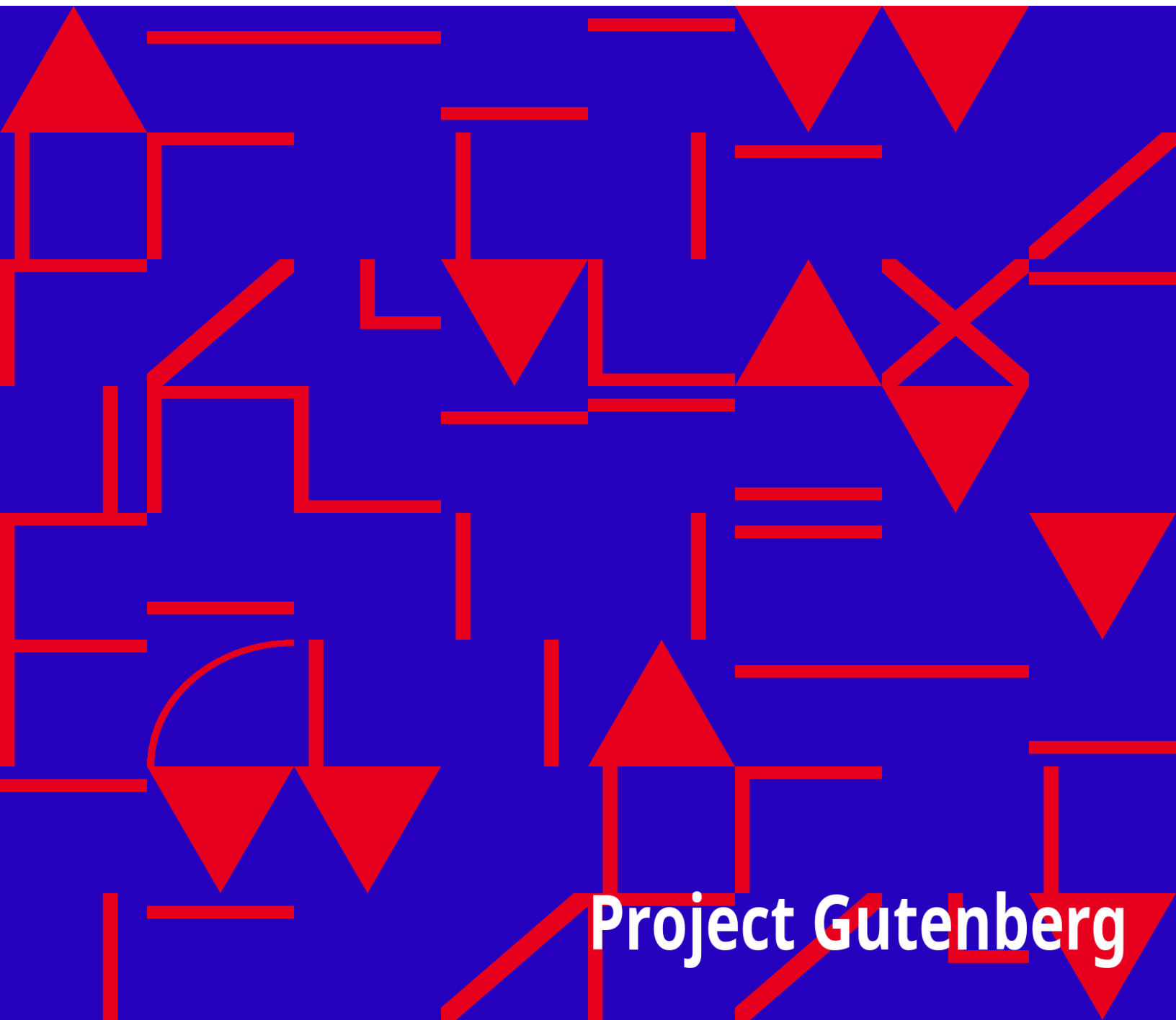


Address to the Non-Slaveholders of the South

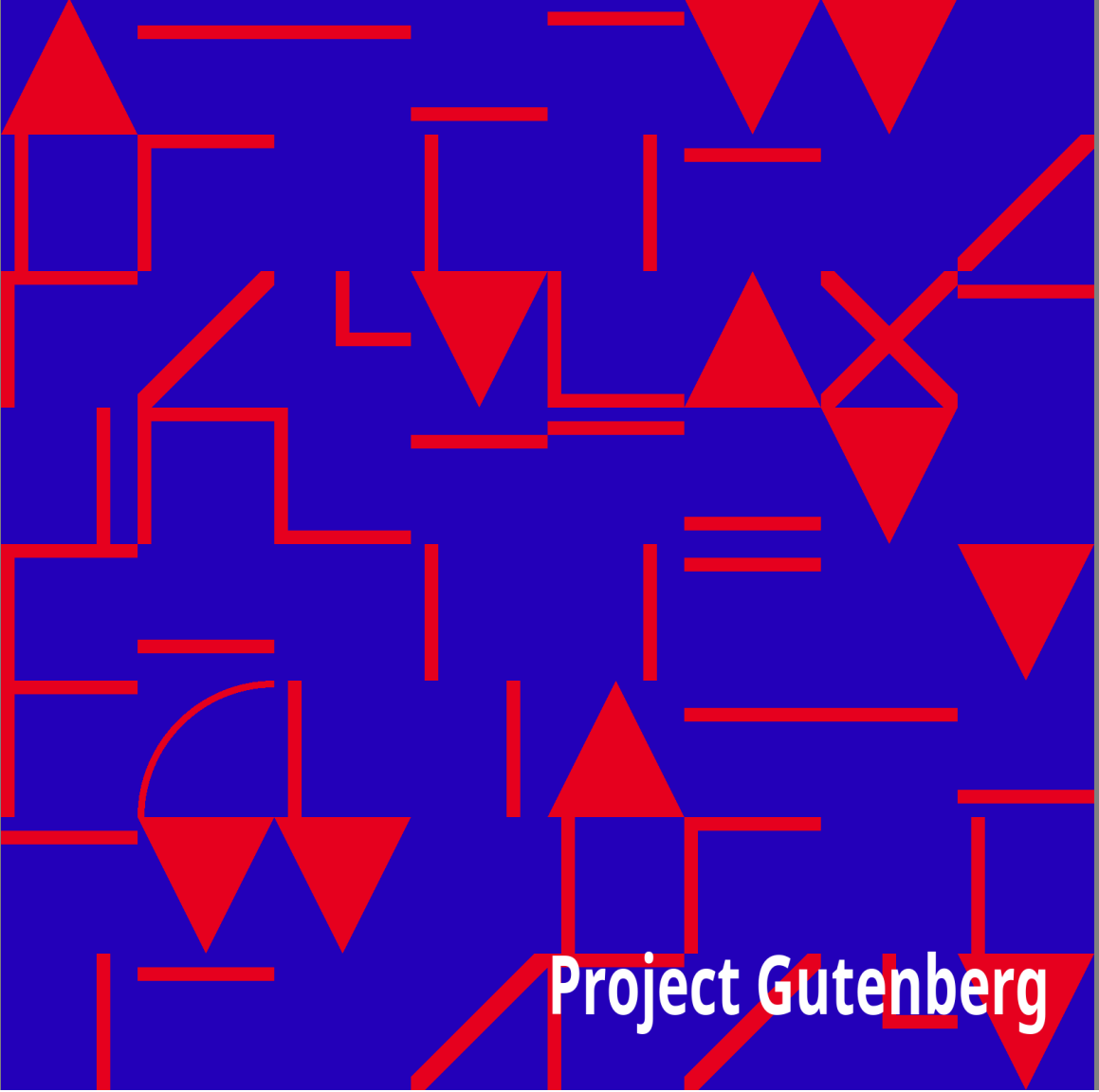
Lewis Tappan



Project Gutenberg

Address to the Non-Slaveholders of the South

Lewis Tappan



Project Gutenberg

The Project Gutenberg eBook of Address to the Non-Slaveholders of the South

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Address to the Non-Slaveholders of the South

Author: Lewis Tappan

Release date: October 25, 2012 [eBook #41173]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/41173

Credits: Produced by Jonathan Ingram, Ernest Schaal, and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK ADDRESS TO
THE NON-SLAVEHOLDERS OF THE SOUTH ***

ADDRESS

TO THE

NON-SLAVEHOLDERS OF THE SOUTH,
ON THE
SOCIAL AND POLITICAL EVILS
OF
SLAVERY.

New York:
PUBLISHED BY THE AM. & FOR. ANTI-SLAVERY SOCIETY,
WILLIAM HARNED, AGENT, 61 JOHN STREET.

☞ For Sale at the Depository of the Amer. and For. A. S. Society,
No. 61 JOHN STREET, NEW YORK, at \$35 per thousand, \$4 per hundred,
50 cents per dozen, and 5 cents for a single copy.

WILLIAM HARNED, Publishing Agent.

ADDRESS

TO

THE NON-SLAVEHOLDERS OF THE SLAVE STATES.

FELLOW-CITIZENS:

We ask your attention to the injuries inflicted upon you and your children, by an institution which lives by your sufferance, and will die at

your mandate. Slavery is maintained by *you* whom it impoverishes and degrades, not by those upon whom it confers wealth and influence. These assertions will be received by you and others with surprise and incredulity. Before you condemn them, ponder the following considerations and statistics.

We all know that the sugar and cotton cultivation of the South is conducted, not like the agriculture of the North, on small farms and with few hands, but on vast plantations and with large gangs of negroes, technically called "the force." In the breeding States, men, women and children form the great staple for exportation; and like other stock, require capital on the part of those who follow the business of rearing them. It is also a matter of notoriety, that the price of slaves has been and still is such as to confine their possession almost exclusively to the rich. We might as well talk of poor men owning herds of cattle and studs of horses, as gangs of negroes. When an infant will bring one hundred, and a man from four hundred to a thousand dollars in the market, slaves are not commodities to be found in the cabins of the poor. You are moreover aware that the great capitalists of the South have their wealth chiefly invested in plantations and slaves, and not as with us in commerce and manufactures.

It has been repeatedly stated that Mr. Carroll, of Baltimore, the former president of the Colonization Society, was the owner of 1,000 slaves. The newspapers, in announcing the death of Mr. Pollock, of North Carolina, remarked that he had left 1,500 slaves. In the account of Mr. Madison's funeral, it was mentioned that he was followed to the grave by 100 of his slaves, and it is probable that the women and children were not included. The following article, from the *Gospel Messenger* for August, 1842, gives us some idea of the feudal vassalage prevailing on the estates of some of your lordly planters. "A NOBLE DEED.—Dr. Mercer, of Adams county, Mississippi, has lately erected, at his own expense, and for the advantage of his *vast* plantation, and the people on his lands, a neat church and parsonage house, at the cost of over \$30,000. He pays the salary of the minister, \$1,200 a year, besides his meat and bread. On Bishop Otey's late visit to that congregation, he and Mr. Deacon, the incumbent, baptized in one day *one hundred and eight* children and *ten* adults, all belonging to the plantation."

At the North a farmer hires as many *men* as his work requires; at the South the laborers cannot be separated from the *women* and *children*. These are *property*, and must be owned by somebody. Now when we take this last circumstance into consideration, and at the same time recollect that the very value of the slaves debars the poor from owning them—and connect these two facts with the character of the cultivation in which slave labor is employed; we must be ready to admit that those who do employ this species of labor, cannot on an average hold less than *ten slaves*, including able-bodied men, their wives and children. It appears by the census, that of the slave population, the two sexes are almost exactly equal in number; and that there are two children under ten years of age, for every male slave over that age. Hence, if a planter employs only three men, we may take it for granted that his slave family consists of at least 12 souls, viz.: 3 men, 3 women, and 6 children. We of course estimate the number of children too low, since there will be some over ten years of age. It thus appears that the average number of slaves we assign to each slaveholder is probably far below the truth; but we purposely avoid even the approach to exaggeration. Now the number of slaves in the United States by the last census, was 2,487,113; of course according to our estimate of ten slaves to one master, there can be only 248,711 slaveholders.

The number of <i>white males over 20 years of age</i> in the slave states and territories was	1,016,307
Deduct Slaveholders, viz.	248,711
And we have the number we are now addressing	767,596

We are not forgetful that our enumeration must embrace some who are the *sons* of slaveholders, and who are therefore interested in upholding the system,—but we are fully convinced that our estimate of the number of slaveholders is far beyond the truth, and that we may therefore safely throw out of account the very moderate number of slaveholders' sons above 20 years of age, and not themselves possessing slaves.

Here then, fellow-citizens, you see your strength. You have a majority of 518,885 over the slaveholders; and now we repeat, that with a numerical majority of more than half a million, slavery lives or dies at *your* behest.

We know that this result is so startling and unexpected, that you will scarcely credit the testimony of figures themselves. It is so commonly taken for granted, that every white man at the South is a slaveholder, that many will doubtingly inquire, where are these non-slaveholding citizens to be found? We answer, everywhere. Is poverty of rare occurrence in any country? Has it ever happened that the mass of any people were rich enough to keep, for their own convenience, such expensive laborers—as southern slaves? Slavery moreover is monopolizing in its tendency, and leads to the accumulation of property in few hands. It is also to be observed, that the high price of slaves, and the character of the cultivation in which they are employed, both conspire to concentrate this class of laborers on particular spots, and in the hands of large proprietors. Now the census shows that in some districts the slaves are collected in vast numbers, while in others they are necessarily few. Thus, for instance, in Georgetown district, S. Carolina, there are about 7.5 slaves to every white man, woman and child, in the district. Now if from the white population in this district we exclude all but the slaveholders themselves, the average number of slaves held by them would probably exceed one hundred. On the other hand, we find all through the slave States, many districts where the slaves bear a very small proportion to the whites, and where, of course, the non-slaveholders must form a vast and overwhelming majority. A few instances must suffice.

The whites are to the slaves in	Brook Co., Va., as	85 to 1
" " "	Yancy Co., N. Car.,	22 to 1
" " "	Union Co., Ga.,	35 to 1
" " "	De Kalb Co., Ala.,	16 to 1
" " "	Fentress Co., Tenn.,	43 to 1
" " "	Morgan Co., Ky., ^[1]	74 to 1
" " "	Taney Co., Mo.,	80 to 1
" " "	Searcy Co., Ark.,	311 to 1

[1] Mr. Nicholas, in a speech in the Kentucky Legislature in 1837, objected to calling a convention to alter the Constitution, because in such a convention he believed the abolition of slavery would be agitated; and he reminded the house, that in the State "the slaveholders do not stand in the ratio of more than one to six or seven." Of course slavery is maintained in Kentucky, through the consent of the non-slaveholders.

There is not a State or Territory in the Union in which you, fellow-citizens, have not an overwhelming majority over the slaveholders; and the majority is probably the greatest in those in which the slaves are the most numerous, because in such they are chiefly concentrated on large plantations.

It has been the policy of the slaveholders to keep entirely out of sight their own numerical inferiority, and to speak and act as if *their* interests were those of the whole community. They are the nobility of the south, and they find it expedient to forget that there are any commoners. Hence with them slavery is the INSTITUTION of the SOUTH, while it is in fact the institution of only a portion of the people of the south. It is their craft to magnify and extol the importance and advantages of *their* institution; and hence we are told by Gov. McDuffie, that slavery "is the CORNER STONE of our republican institutions." To defend this corner stone from the assaults of truth and reason, he audaciously proposed to the legislature, that abolitionists should be punished "with death without benefit of clergy." This gentleman, like most demagogues, while professing great zeal for the PEOPLE, whose interests were for the most part adverse to slavery, was in fact looking to his own aggrandizement. He was, at the very time he uttered these absurd and murderous sentiments, a great planter, and his large "force" was said to have raised in 1836, no less than 122,500 lbs. of cotton. [2] In the same spirit, and with the same design, the Report of a Committee of the South Carolina Legislature, made in 1842, speaks of slavery "as an ancient domestic institution, *cherished in the hearts of the people at the south*, the eradication of which would demolish our whole system of policy, domestic, social, and political."

[2] See the newspapers of the day.

The slaveholders form a powerful landed aristocracy, banded together for the preservation of their own privileges, and ever endeavoring, for obvious reasons, to identify their private interests with the public welfare. Thus have the landed proprietors of England declaimed loudly on the blessings of dear bread, because the corn laws keep up rents and the price of land. The wealth and influence of your aristocracy, together with your own

poverty, have led you to look up to them with a reverence bordering on that which is paid to a feudal nobility by their hereditary dependents. Hence it is, that, unconscious of your own power, you have permitted them to assume, as of right, the whole legislation and government of your respective States. We now propose to call your attention to the practical results of that control over *your* interests, which, by your sufferance, they have so long exercised. We ask you to join us in the inquiry how far you have been benefitted by the care of your guardians, when compared with the people of the North, who have been left to govern themselves. We will pursue this inquiry in the following order:

1. Increase of Population.
2. State of Education.
3. State of Industry and Enterprise.
4. Feeling towards the Laboring Classes.
5. State of Religion.
6. State of Morals.
7. Disregard for Human Life.
8. Disregard for Constitutional Obligations.
9. Liberty of Speech.
10. Liberty of the Press.
11. Military Weakness.

I. INCREASE OF POPULATION.

The ratio of increase of population, especially in this country, is one of the surest tests of public prosperity. Let us then again listen to the impartial testimony of the late census. From this we learn that the increase of population in the free States from 1830 to 1840, was at the rate of 38 per cent., while the increase of the *free* population in the slave States was only 23 per cent. Why this difference of 15 in the two ratios? No other cause can be assigned than slavery, which drives from your borders many of the virtuous and enterprising, and at the same time deters emigrants from other States and from foreign countries from settling among you.

The influence of slavery on population is strikingly illustrated by a comparison between Kentucky and Ohio. These two States are of nearly equal areas, Kentucky however having about 3000 square miles more than the other. ^[3] They are separated only by a river, and are both remarkable for the fertility of their soil; but one has, from the beginning, been cursed with slavery, and the other blessed with freedom. Now mark their respective careers.

^[3] American Almanac for 1843, p. 206.

In 1792, Kentucky was erected into a State, and Ohio in 1802.

	Free population of Kentucky.	Free population of Ohio.
1790	61,227,	a wilderness.
1800	180,612,	45,365
1810	325,950,	230,760
1820	437,585,	581,434
1830	522,704,	937,903
1840	597,570,	1,519,467

The representation of the two States in Congress, has been as follows:

1802,	Kentucky	6,	Ohio	1,
1812,	"	9,	"	6,
1822,	"	12,	"	14,
1832,	"	13,	"	19,
1842,	"	10,	"	21,

The value of land, other things being equal, is in proportion to the density of the population. Now the population of Ohio is 38.8 to a square mile, while the free population of Kentucky is but 14.2 to a square mile—and probably the price of land in the two States is much in the same proportion. You are told, much of the wealth is invested in negroes—yet it obviously is a wealth that impoverishes; and no stronger evidence of the truth of this assertion is needed, than the comparative price of land in the free and slave States. The two principal cities of Kentucky and Ohio are Louisville and Cincinnati; the former with a population of 21,210, the latter with a population of 46,338. Why this difference? The question is answered by the *Louisville Journal*. The editor, speaking of the two rival cities, remarks, "The most potent cause of the more rapid advancement of Cincinnati than Louisville is the ABSENCE OF SLAVERY. The same influences which made Ohio the young giant of the West, and is advancing Indiana to a grade higher than Kentucky, have operated in the *Queen City*. They have no *dead weight to carry*, and consequently have the advantage in the race."

In 1840, Mr. C. M. Clay, a member of the Kentucky Legislature, published a pamphlet against the repeal of the law prohibiting the importation of slaves from the other States. We extract the following:

"The world is teeming with improved machinery, the combined development of science and art. *To us it is all lost; we are comparatively living in centuries that are gone; we cannot make it, we cannot use it when made.* Ohio is many years younger, and possessed of fewer advantages than our State. Cincinnati has manufactories to sustain her; last year she put up one thousand houses. Louisville, with superior natural advantages, as all the world knows, wrote 'to rent,' upon many of her houses. OHIO IS A FREE STATE, KENTUCKY A SLAVE STATE."

Mr. Thomas F. Marshall, of Kentucky, in a pamphlet published the same year, and on the same subject, draws the following comparison between Virginia and New York:

"In 1790, Virginia, with 70,000 square miles of territory, contained a population of 749,308. New York, upon a surface of 45,658 square miles, contained a population of 344,120. This statement exhibits in favor of Virginia a difference of 24,242 square miles of territory, and 408,188 in population, which is the *double* of New York, and 68,600 more. In 1830, after a race of forty years, Virginia is found to contain 1,211,405 souls, and New York 1,918,608, which exhibits a difference in favor of New York of 607,203. The increase on the part of Virginia will be perceived to be 463,187, starting from a basis more than double as large as that of New York. The increase of New York, upon a basis of 340,120, has been 1,578,391 human beings. Virginia has increased in a ratio of 61 per cent., and New York in that of 566 per cent.

"The total amount of property in Virginia under the assessment of 1838, was \$211,930,508. The aggregate value of real and personal property in New York, in 1839, was \$654,000,000, exhibiting an excess in New York over Virginia of capital of \$442,069,492.

"Statesmen may differ about policy, or the means to be employed in the promotion of the public good, but surely they ought to be agreed as to what prosperity means. I think there can be no dispute that New York is a greater, richer, a more prosperous and powerful State than Virginia. What has occasioned the difference?... There is but one explanation of the facts I have shown. The clog that has stayed the march of her people, the incubus that has weighed down her enterprise, strangled her commerce, kept sealed her exhaustless fountains of mineral wealth, and paralyzed her arts, manufactures and improvement, is NEGRO SLAVERY."

These statements were made before the results of the last census were known. By the census of 1840, it appears that in the ten preceding years,

The population of Virginia has increased

28,392

In the same time the population of N. Y. increased	710,413
The rate of increase in Virginia was	2.3 per cent.
" " New York,	33.7 "
Virginia has 12.5 free inhabitants to a square mile.	
New York 52.7 " " " "	
In 1790, Massachusetts, with Maine, had	378,717
but	inhabitants,
" Maryland,	319,728 "
In 1840, Massachusetts alone,	737,699 "
" Maryland,	469,232 "

Now let it be recollected that Maryland is nearly *double* the size of Massachusetts. In the last there are 98.8 free inhabitants to the square mile; in the former only 27.2.

If we turn to the new States, we find that slavery and freedom have the same influence on population as in the old. Take, for instance, Michigan and Arkansas. They came into the Union about the same time—

In 1830, the population of Arkansas was	30,388
In 1840, " "	97,574
In 1830, " Michigan,	31,639
In 1840, " "	212,267

The ratio of increase of white inhabitants, for the last ten years, has been in Arkansas as 200 per cent; in Michigan, 574 per cent. In both instances the increase has been chiefly owing to immigration; but the ratio shows the influence of slavery in retarding immigration. Compare also Alabama and Illinois—

In 1830, the free population of	Alabama, was	191,975
" " "	Illinois,	157,455
Excess in favor of Alabama		34,520

In 1840, free population of	Illinois,	476,183
" " "	Alabama,	337,224
Excess in favor of Illinois,		138,959

We surely need not detain you with farther details on this head, to convince you what an enormous sacrifice of happiness and prosperity you are offering on the altar of slavery. But of the character and extent of this sacrifice you have as yet had only a partial glimpse. Let us proceed to examine

II. THE STATE OF EDUCATION IN THE SLAVE STATES.

The maxim that "Knowledge is power," has ever more or less influenced the conduct of aristocracies. Education elevates the inferior classes of society, teaches them their rights, and points out the means of enforcing them. Of course, it tends to diminish the influence of wealth, birth, and rank. In 1671, Sir William Berkley, then Governor of Virginia, in his answer to the inquiries of the Committee of the Colonies, remarked, "I thank God that there are no free schools nor printing presses, and I hope we shall not have them these hundred years." The spirit of Sir William seems still to preside in the councils of his own Virginia, and to actuate those of the other slave States.

The power of the slaveholders, as we have already showed you, depends on the acquiescence of the major part of the white inhabitants in their domination. It cannot be, therefore, the interest or the inclination of the sagacious and reflecting among them, to promote the intellectual improvement of the inferior class.

In the free States, on the contrary, where there is no caste answering to your slaveholders—where the *People* literally partake in the government, mighty efforts are made for general education; and in most instances, elementary instruction is, through the public liberality, brought within the reach of the children of the poor. You have lamentable experience, that such is not the case where slaveholders bear rule.

But you will receive with distrust whatever we may say as to the comparative ignorance of the free and slave States. Examine then for yourselves the returns of the last census on this point. This document gives us the number of white persons over twenty years of age in each State, who cannot read *and* write. It appears that these persons are to the *whole* white population in the several States as follows, viz.:

Connecticut,	1 to every 568	Louisiana,	1 every 38 1-2
Vermont,	1 "	473 Maryland,	1 " 27
N. Hamp.,	1 "	310 Mississippi,	1 " 20
Mass.,	1 "	166 Delaware,	1 " 18
Maine,	1 "	108 S. Carolina,	1 " 17
Michigan,	1 "	97 Missouri,	1 " 16
R. Island,	1 "	67 Alabama,	1 " 15
New Jersey,	1 "	58 Kentucky,	1 " 13 1/2
New York,	1 "	56 Georgia,	1 " 13
Penn.,	1 "	50 Virginia,	1 " 12 1/2
Ohio,	1 "	43 Arkansas,	1 " 11 1/2
Indiana,	1 "	18 Tennessee,	1 " 11
Illinois,	1 "	17 N. Carolina,	1 " 7 [4]

[4] This summary from the return of the census, is copied from the Richmond (Va.) Compiler.

It will be observed by looking at this table, that Indiana and Illinois are the *only* free States, which in point of education are surpassed by *any* of the slave States: for this disgraceful circumstance three causes may be assigned, viz., their recent settlement, the influx of foreigners, and emigration from the slave States. The returns from New York, Rhode Island, New Jersey and Pennsylvania, are greatly affected by the vast number of foreigners congregated in their cities, and employed in their manufactories and on their public works. In Ohio, also, there is a large foreign population: and it is well known that comparatively few emigrants from Europe seek a residence in the slave States, where there is little or no employment to invite them. But what a commentary on slavery and slaveholders is afforded by the gross ignorance prevailing in the old States of South Carolina, Virginia, and North Carolina! But let us proceed. The census gives a return of "scholars at public charge."

Of these, there are in the free States,	432,173
" " slave States,	35,580

Ohio alone has 51,812 such scholars,—more than are to be found in the 13 slave States! Her neighbor Kentucky has 429!! Let us compare in this particular the *largest* and the *smallest* State in the Union.

Virginia has scholars at public charge	9,791
Rhode Island	10,912 ^[5]

[5] See American Almanac for 1842, page 226.

But we have some *official* confessions, which give a still more deplorable account of Southern ignorance. In 1837, Governor Clarke, in his message to the Kentucky Legislature, remarked, "By the computation of those most familiar with the subject, ONE THIRD OF THE ADULT POPULATION OF THE STATE ARE UNABLE TO WRITE THEIR NAMES."

Governor Campbell reported to the Virginia Legislature, that from the returns of 98 clerks, it appeared that of 4614 *applications for marriage licenses in 1837, no less than 1047 were made by men unable to write.*

These details will enable you to estimate the impudence of the following plea in behalf of slavery:

"It is by the existence of slavery, exempting so large a portion of our citizens from the necessity of bodily labor, that we have leisure for *intellectual pursuits*, and the means of attaining a liberal education."—*Chancellor Harper of South Carolina on Slavery.—Southern Literary Messenger, Oct. 1838.*

Whatever may be the leisure enjoyed by the slaveholders, they are careful not to afford the means of literary improvement to their fellow-citizens who are too poor to possess slaves, and who are, by their very ignorance, rendered more fit instruments for doing the will, and guarding the human property of the wealthier class.

III. INDUSTRY AND ENTERPRISE.

In a community so unenlightened as yours, it is a matter of course, that the arts and sciences must languish, and the industry and enterprise of the country be oppressed by a general torpor. Hence multitudes will be without regular and profitable employment, and be condemned to poverty and numberless privations. The very advertisements in your newspapers show that, for a vast proportion of the comforts and conveniences of life, you are dependent on Northern manufacturers and mechanics. You both know and feel that slavery has rendered labor disgraceful among you; and where this is the case, industry is necessarily discouraged. The great staple of the South is cotton; and we have no desire to undervalue its importance. It, is however, worthy of remark, that its cultivation affords a livelihood to only a small proportion of the free inhabitants; and scarcely to any of those we are now addressing. Cotton is the product of slave labor, and its profits at home are confined almost exclusively to the slaveholders. Yet on account of this article, we hear frequent vaunts of the agricultural riches of the South. With the exception of cotton, it is difficult to distinguish your agricultural products arising from slaves, and from free labor. But admitting, what we know is not the fact, that *all* the other productions of the soil are raised *exclusively* by free labor, we learn from the census, that the agricultural products of the North exceed those of the South, cotton excepted, \$226,219,714. Here then we have an appalling proof of the paralyzing influence of slavery on the industry of the whites.

In every community a large portion of the inhabitants are debarred from drawing their maintenance directly from the cultivation of the earth. Other and lucrative employments are reserved for them. If the slaveholders chiefly engross the soil, let us see how you are compensated by the encouragement afforded to mechanical skill and industry.

In 1839 the Secretary of the Treasury reported to
Congress, that the tonnage of vessels built in the 120,988
United States was

Built in the slave States and Territories

23,600

Or less than one-fifth of the whole! But the difference is still more striking, when we take into consideration the comparative *value* of the shipping built in the two regions:

In the free States the value is

\$6,311,805

In the slave do.

704,291 [6]

[6] See American Almanac for 1843, page 153.

It would be tedious and unprofitable to compare the results of the different branches of manufacture carried on at the North and the South. It is sufficient to state that, according to the census, the value of the manufactures

In the free States are

\$334,139,690

In the slave State

83,935,742

Having already compared Ohio and Kentucky in reference to population and education, we will pursue the comparison as to agricultural and mechanical industry. On account of contiguity, and similarity of extent, soil and climate, no two States can perhaps be so aptly contrasted for the purpose of illustrating the influence of slavery. It should also be borne in mind that Kentucky can scarcely be called a cotton State, having in 1840 raised only 607,456 lbs. of that article. Hence the deficiency of agriculture and other products in Kentucky arises, not from a peculiar species of cultivation, but solely from the withering effects of slavery.

	<i>Ohio.</i>	<i>Kentucky.</i>
Wool,	3,685,315 lbs.	1,786,842
Wheat,	16,571,661 bushels	4,803,152
Hay,	1,022,037 tons	88,306
Fulling mills,	205	5
Printing-offices,	159	34
Tanneries,	862	387

Commercial houses in foreign trade,	53	5
Value of machinery manufactured,	\$875,731	\$46,074

In one species of manufacture the South apparently excels the North, but unfortunately it is in appearance only. Of 9657 distilleries in the United States, no less than 7665 were found in the slave States and Territories; but for want of skill and capital these yield 1992 gallons less than the other.

Where there is so much ignorance and idleness, we may well suppose that the inventive faculties will be but little exercised; and accordingly we find that of the 545 patents granted for new inventions in 1846, only 80 were received by the citizens of the slave States. We have thus, fellow-citizens, offered you the testimony of figures, as to the different state of society under freedom and slavery; suffer us now to present you pictures of the two regions, drawn not by abolitionists, but by Southern artists, in unguarded hours. Mr. Clowney, of South Carolina, thus portrayed his native State, in the ardor of debate on the floor of Congress:

"Look at South Carolina now, with her houses deserted and falling to decay; her once fruitful fields worn out and abandoned for want of timely improvement or skilful cultivation; and her thousands of acres of inexhaustible lands, still promising an abundant harvest to the *industrious* husbandman, lying idle and neglected. In the interior of the State where I was born, and where I now live, although a country possessing all the advantages of soil, climate and health, abounding in arable land, unreclaimed from the first rude state of nature, there can now be found many neighborhoods where the population is too sparse to support a common elementary school for children. Such is the deplorable condition of one of the oldest members of this Union, that dates back its settlement more than a century and a half, while other States, born as it were but yesterday, already surpass what Carolina is or ever has been, in the happiest and proudest day of her prosperity."

This gentleman chose to attribute the decline of South Carolina to the tariff; rather than to the obvious cause, that one-half of the PEOPLE of South Carolina are poor, ignorant, degraded SLAVES, and the other half suffering in

all their faculties and energies, from a moral pestilence which they insanely regard as a blessing and not a curse. Surely it is not owing to the tariff, that this ancient member of the Union has 20,615 white citizens over twenty years of age who do not know their letters; while Maine, with double her population, has only 3,241.

Now look upon a very different picture. Mr. Preston, of South Carolina, not long since delivered a speech at Columbia in reference to a proposed rail-road. In this speech, in order to stimulate the efforts of the friends of the road, he indulged in the following strain:

"No Southern man can journey (as he had lately done) through the Northern States, and witness the prosperity, the industry, the public spirit which they exhibit—the sedulous cultivation of all those arts by which life is rendered comfortable and respectable—without feelings of deep sadness and shame as he remembers *his own neglected and desolate home*. There, no dwelling is to be seen abandoned—not a farm uncultivated. Every person and every thing performs a part towards the grand result; and the whole land is covered with fertile fields, with manufactories, and canals, and rail-roads, and edifices, and towns, and cities. We of the South are mistaken in the character of these people, when we think of them only as pedlars in horn flints and bark nutmegs. Their energy and enterprise are directed to all objects great and small within their reach. The number of rail-roads and other modes of expeditious intercommunication knit the whole country into a closely compacted mass, through which the productions of commerce and of the press, the comforts of life, and the means of knowledge, are universally diffused; while the close intercourse of travel and of business makes all neighbors, and promotes a common interest and a common sympathy. How different the condition of these things in the South! *Here* the face of the country wears the aspect of premature old age and decay. NO IMPROVEMENT IS SEEN GOING ON, nothing is done for posterity. No man thinks of anything beyond the present moment."

Yet this same Mr. Preston, thus sensitively alive to the superior happiness and prosperity of the free States, declared in the United States Senate, "Let an abolitionist come within the borders of South Carolina, if

we can catch him we will try him, and notwithstanding all the interference of all the governments of the earth, including the Federal Government, we will HANG him." [7] In other words, the slaveholders, rather than part with their slaves, are ready to murder, with all the formalities of law, the very men who are laboring to confer on them the envied blessings of the North.

[7]We are well aware that Mr. Preston has denied, what no one asserted, that he had said an abolitionist, if he came into South Carolina, would be executed by Lynch law. He used the words we have quoted. (See "New York Journal of Commerce," Jan. 6th, 1838).

IV. FEELINGS OF THE SLAVEHOLDERS TOWARDS THE LABORING CLASSES.

Whenever the great mass of the laboring population of a country are reduced to beasts of burden, and toil under the lash, "bodily labor," as Chancellor Harper expresses it, must be disreputable, from the mere influence of association. Hence you know *white* laborers at the South are styled "mean whites." At the North, on the contrary, labor is regarded as the proper and commendable means of acquiring wealth; and our most influential men would in no degree suffer in public estimation, for holding the plough, or even repairing the highways. Hence no poor man is deterred from seeking a livelihood by honest labor from a dread of personal degradation. The different light in which labor is viewed at the North and the South is one cause of the depression of industry in the latter.

Another cause is the ever-wakeful jealousy of your aristocracy. They fear the PEOPLE; they are alarmed at the very idea of power and influence being possessed by any portion of the community not directly interested in slave property. Visions of emancipation, of agrarianism, and of popular resistance to their authority, are ever floating in their distempered and excited imaginations. They know their own weakness, and are afraid you should know it also. Hence it is their policy to keep down the "mean whites." Hence their philippics against the lower classes. Hence their constant comparison of the laborers of the North, with their own slaves; and hence, in no small degree, the absence among you of those institutions which confer upon the poor that knowledge which is *power*. Do you deem these assertions uncharitable? Listen to their own declarations:

"We believe the servitude which prevails in the South far preferable to that of the *North*, or in Europe. Slavery will exist in all communities. There is a class which may be nominally free, but they will be virtually *Slaves*."—*Mississippian*, July 6th, 1838.

"Those who depend on their daily labor for their daily subsistence can never enter into political affairs: they never do, never will, never can."—*B. W. Leigh in Virginia Convention, 1829.*

"All society settles down into a classification of capitalists and laborers. The former will *own* the latter, either collectively through the government, or individually in a state of domestic servitude, as exists in the Southern States of this confederacy. If LABORERS ever obtain the political power of a country, it is in fact in a state of REVOLUTION. The capitalists north of Mason and Dixon's line, have precisely the same interest in the labor of the country, that the capitalists of England have in their labor. Hence it is that they must have a strong federal government (!) *to control* the labor of the nation. But it is precisely the reverse with us. We have already not only a right to the proceeds of our laborers, but we OWN a *class of laborers* themselves. But let me say to gentlemen who represent the great class of capitalists in the North—beware that you do not drive us into a separate system; for if you do, as certain as the decrees of heaven, you will be compelled to *appeal to the sword to maintain yourselves at home*. It may not come in your day; but your children's children will be covered with the blood of domestic factions, and will see a *plundering mob contending for power and conquest*."—*Mr. Pickens, of South Carolina, in Congress, 21st Jan., 1836.*

So the way to prevent *plundering* mobs, is to enslave the poor! We shall see presently, how far this expedient has been successful in preventing *murdering* mobs.

"In the very nature of things there must be classes of persons to discharge all the different offices of society, from the highest to the lowest. Some of these offices are regarded as *degrading*, although they must and will be performed. Hence those manifest forms of dependent servitude which produce a sense of superiority in the masters or employers, and of inferiority on the part of the servants. Where these offices are performed by *members of the political community*, a DANGEROUS ELEMENT is obviously introduced into the body politic. Hence the alarming tendency to violate the rights of property by

agrarian legislation, which is beginning to be manifest in the older States, where UNIVERSAL SUFFRAGE *prevails without* DOMESTIC SLAVERY.

"In a word, the institution of domestic slavery supersedes the *necessity* of AN ORDER OF NOBILITY, AND ALL THE OTHER APPENDAGES OF A HEREDITARY SYSTEM OF GOVERNMENT."—*Governor M'Duffie's Message to the South Carolina Legislature, 1836.*

"We regard SLAVERY *as the most safe and stable basis for free institutions in the world.* It is impossible with us, that the conflict can take place between labor and capital, which makes it so difficult to establish and maintain free institutions in all wealthy and highly civilized nations where such institutions do not exist. Every plantation is a little community with the master at its head, who concentrates in himself the united interests of capital and labor, *of which he is the common representative.*"—(Mr. Calhoun, of South Carolina, in the U. S. Senate, Jan. 10th, 1840.)

"We of the South have cause now, and shall soon have greater, to congratulate ourselves on the existence of a population among us, which excludes the POPULACE which in effect rules some of our Northern neighbors, and is rapidly gaining strength wherever slavery does not exist—a populace made up of the dregs of Europe, and the most worthless portion of the native population."—(*Richmond Whig*, 1837.)

"Would you do a benefit to the horse or the ox by giving him a cultivated understanding, a fine feeling? So far as the MERE LABORER has the pride, the knowledge, or the aspiration of a freeman, he is unfitted for his situation. If there are sordid, servile, *laborious* offices to be performed, is it not better that there should be sordid, servile, laborious beings to perform them?

"Odium has been cast upon our legislation, on account of its forbidding the elements of education being communicated to slaves. But in truth what injury is done them by this? *He who works during the day with his hands*, does not read in the intervals of leisure for his amusement, or the improvement of his mind, or the exception is so

very rare as scarcely to need the being provided for."—(Chancellor Harper of South Carolina.—*Southern Literary Messenger*.)

This same gentleman delivered an oration on the 4th of July, 1840, reviewing the principles of the two great political parties, and although he supported Mr. Van Buren's administration, in consideration of its devotion to the slave interest, he frankly inquires:—

"Is there anything in the principles and opinions of the great DEMOCRATIC RABBLE, as it has been justly called, which should induce *us* to identify ourselves with that? Here you may find every possible grade and hue of opinion which has ever existed in the country. Here you may find loafer, and loco foco, and agrarian, and all the rabble of the city of New York, the most corrupt and depraved of rabbles, and which controls, in a great degree, the city itself, and through that, as being the commercial metropolis, exercises much influence over the State at large.

"What are the essential principles of democracy as distinguished from republicanism? The first consists in the dogma, so portentous to us, of the natural equality and unalienable right to liberty of every human being. Our allies (!) no doubt, are willing at *present* to modify the doctrine in *our favor*. But the spirit of democracy at large makes no such exceptions, nor will these (our allies, the Northern democrats) continue to make it, longer than necessity or *interest* may require. The second consists in the doctrine of the divine right of majorities; a doctrine not less false, and slavish, and absurd, than the ancient doctrine of the divine right of kings."

Mr. Robert Wickliffe, of Kentucky, in a speech published in the *Louisville Advertiser*, in opposition to those who were adverse to the importation of slaves from the States, thus discourseth:

"Gentlemen wanted to drive out the black population, that they may obtain WHITE NEGROES in their place. WHITE NEGROES have this advantage over black negroes, they can be converted into voters; and the men who live upon the sweat of their brow, and pay them but a dependent and scanty subsistence, can, if able to keep ten thousand of

them in employment, come up to the polls and change the destiny of the country.

"How improved will be our condition when we have such white negroes as perform the servile labors of Europe, of Old England, and he would add now of *New England*; when our body servants and our cart drivers and our street sweepers are *white negroes* instead of black. Where will be the independence, the proud spirit, and the chivalry of Kentuckians then?"

Had the gentleman looked across the river, he might have found an answer to his question, in the wealth, power, intelligence and happiness of Ohio.

In reading the foregoing extracts, it is amusing to observe how adroitly the slaveholders avoid all recognition of any other classes among them than masters and slaves. Who would suspect from their language, that they were themselves a small minority of the white inhabitants, and that their own "white negroes" could, if united and so disposed, outvote them at the polls? It is worthy of remark that in their denunciations of the *populace*, the *rabble*, *those who work with their hands*, they refer not to complexion, but to condition; not to slaves, but to the poor and laborious of their own color. It is these haughty aristocrats who find in Northern democrats "allies," who in Congress and out of it are zealous in obeying their mandates, and who may justly be termed their "white negroes."

Slavery, although considered by Mr. Calhoun "the most stable basis of free institutions in the world," has, as we shall presently show you, in fact, led to grosser outrages in the social compact, to more alarming violations of constitutional liberty, to more bold and reckless assaults upon "free institutions," than have ever been even attempted by the much-dreaded agrarianism of the North.

V. STATE OF RELIGION.

The deplorable ignorance and want of industry at the South, together with the disrepute in which honest industry is held, cannot but exercise, in connection with other causes, a most unhappy influence on the morals of the inhabitants. You have among you between two and three millions of slaves, who are kept by law in brutal ignorance, and who, with few exceptions, are virtually heathens. ^[8]

^[8] "From long continued and close observation, we believe that their (the slaves') moral and religious condition is such that they may justly be considered the HEATHEN of this Christian country, and will bear comparison with heathen in any country in the world. The negroes are destitute of the Gospel, and ever will be under the present state of things."—*Report published by the Synod of South Carolina and Georgia, Dec. 3, 1833.*

You have also among you more than 200,000 free negroes, thus described by Mr. Clay:—"Contaminated themselves, they extend their vices to all around them." ^[9]

^[9] *Speech before the American Colonization Society.*

If evil communications corrupt good manners, the intimate intercourse of the whites with these people must be depraving: nor can the exercise of despotic power by the masters, their wives and children be otherwise than unfavorable to the benevolent affections.

It is with pain we are compelled to add, that the conduct and avowed sentiments of the Southern clergy in relation to Slavery, necessarily exert an unhappy influence. Most of the clergy are themselves slaveholders, and are thus personally interested in the system, and are consequently bold and active in justifying it from Scripture, representing it as an institution enjoying the divine sanction. An English author, in reference to these efforts of your clergy, forcibly remarks: "Whatever may have been the unutterable

wickedness of slavery in the West Indies, *there* it never was baptized in the Redeemer's hallowed name, and its corruptions were not concealed in the garb of religion. That acmé of piratical turpitude was reserved for the professed disciples of Jesus in America." And well has John Quincy Adams said, "The spirit of slavery has acquired not only an overruling ascendancy, but it has become at once intolerant, proscriptive, and sophistical. It has crept into the philosophical chairs of the schools. Its cloven hoof has ascended the pulpits of the churches—professors of colleges teach it as a lesson of morals—ministers of the Gospel seek and profess to find sanctions for it in the Word of God."

Your ministers live in the midst of slavery, and they *know* that the system on which they bestow their benedictions, is, in the language of Wilberforce, "a system of the grossest injustice, of the most heathenish irreligion and immorality; of the most unprecedented degradation and unrelenting cruelty." Surely, we have reason to fear that the denunciation of Scripture against false prophets of old, will be accomplished against the Southern clergy, "Because they ministered unto them before their idols, and caused the House of Israel to fall into iniquity, therefore have I lifted up mine hand against them, saith the Lord God, and they shall bear their iniquity."—*Ezek.* 44: 12.

Under such ministrations it cannot be expected that Christian zeal and benevolence will take deep root and bear very abundant fruit. This is a subject on which few statistics can be obtained. We have no means of ascertaining the number of churches and ministers throughout the United States of the various denominations. Some opinion, however, may be formed of the religious character of a people, by their efforts for the moral improvement of the community. In the United States there are numerous voluntary associations for religious and benevolent purposes, receiving large contributions and exercising a wide moral influence. Now, of all the large benevolent societies professing to promote the welfare of the whole country, and asking and receiving contributions from all parts of it, we recollect but one that had its origin in the slave region, and the business of which is transacted in it, and that is the AMERICAN COLONIZATION SOCIETY. Of the real object and practical tendency of this Society it is unnecessary to speak—you understand them.

In the 10th Report of the American Sunday School Union [p. 50] is a table showing the number of Sunday School scholars in each State for the year 1834. From this table we learn that

There were in the free States	504,835 scholars.
" " slave "	82,532 "
The single State of New York had	161,768 "

about twice as many as in the thirteen slave States!

And is it possible that the literary and religious destitution you are suffering, together with the vicious habits of your colored population, should have no effect on the moral character of the whites?

We entreat your patient and dispassionate attention to the remarks and facts we are about to submit to you on the next subject of inquiry.

VI. STATE OF MORALS.

Christianity, by controlling the malignant passions of our nature, and exciting its benevolent affections, gives a sacredness to the rights of others, and especially does it guard human life. But where her blessed influence is withdrawn, or greatly impaired, the passions resume their sway, and violence and cruelty become the characteristics of every community in which the civil authority is too feeble to afford protection.

No society is free from vices and crime, and we well know that human depravity springs from another source than slavery. It will not, however, be denied that circumstances and institutions may check those evil propensities to which we are all prone; and it will, we presume, be admitted that in forming an opinion of the moral condition and advancement of any community, we are to be guided in our judgment, not by insulated facts, but by the *tone of public opinion*. Atrocities occur in the best regulated and most virtuous States, but in such they excite indignation and are visited with punishment; while in vicious communities they are treated with levity and impunity.

In a country where suffrage is universal, the representatives will but reflect the general character of their constituents. If we are permitted to apply this rule in testing the moral condition of the South, the result will not be favorable.

In noticing the public conduct of public men, we are not sensible of violating any principle of courtesy or delicacy; we touch not their private character or their private acts; we refer to their language and sentiments, merely as one indication of the standard of morals among their constituents, not as conclusive proof apart from other evidence.

On the 15th February, 1837, R. M. Whitney was arraigned before the House of Representatives for contempt in refusing to attend when required before a Committee. His apology was that he was afraid of his life, and he called, as a witness in his behalf, one of the Committee, Mr. Fairfield, since

Governor of the State of Maine. It appeared that in the Committee, Mr. Peyton of Virginia had put some interrogatory to Whitney, who had returned a written answer which was deemed offensive. On this, as Mr. Fairfield testified, Peyton addressed the Chairman in these terms, "Mr. Chairman, I wish you to inform this witness, that he is not to insult me in his answers: if he does, God damn him! I will take his life on the spot!" Whitney rose and said he claimed the protection of the Committee, on which Peyton exclaimed, "God damn you, you shan't speak, you shan't say one word while you are in this room, if you do I will put you to death!" Soon after, Peyton observing that Whitney was looking at him, cried out, "Damn him, his eyes are on me—God damn him, he is looking at me—he shan't do it—damn him, he shan't look at me!"

The newspaper reports of the proceedings of Congress, a few years since, informed us that Mr. Dawson, a member from Louisiana, went up to Mr. Arnold, another member, and said to him, "If you attempt to speak, or rise from your seat, sir, by God I'll cut your throat!"

In a debate on the Florida war, Mr. Cooper having taken offence at Mr. Giddings of Ohio, for some remarks relative to slavery, said in his reply, "If the gentleman from Ohio will come among my constituents and promulgate his doctrines there, he will find that Lynch law will be inflicted, and that the gentleman will reach an elevation which he little dreams of."

In the session of 1841, Mr. Payne, of Alabama, in debate, alluding to the abolitionists, among whom he insisted the Postmaster-General ought to be included, declared that he would proscribe all abolitionists, he "would put the brand of Cain upon them—yes, the mark of HELL, and if they came to the South he would HANG THEM LIKE DOGS!"

Mr. Hammond, of South Carolina, at an earlier period thus expressed himself in the House: "I warn the abolitionists, ignorant, infatuated barbarians as they are, that if chance shall throw any of them into our hands, they may expect a FELON'S DEATH!"

In 1848, Mr. Hale, a Senator from New Hampshire, introduced a bill for the protection of property in the District of Columbia, attempts having been made to destroy an anti-Slavery press. Mr. Foote, a Senator from

Mississippi, thus expressed himself in reply: "I invite him (Mr. H.) to the State of Mississippi, and will tell him before-hand, in all honesty, that he could not go ten miles into the interior, before he would grace one of the tallest trees of the forest, with a rope around his neck, with the approbation of every virtuous and patriotic citizen, and that, if necessary, I SHOULD MYSELF ASSIST IN THE OPERATION."

And now, fellow-citizens, do these men, with all their profanity and vulgarity, breathing out threatenings and slaughter, represent the feelings, and manners, and morals of the slaveholding community? We have seen no evidence that they have lost a particle of popular favor in consequence of their ferocious violence. Alas! their language has been re-echoed again and again by public meetings in the slave States; and we proceed to lay before you overwhelming proof that in the expression of their murderous feelings towards the abolitionists, they have faithfully represented the sentiments of their constituents.

VII. DISREGARD FOR HUMAN LIFE.

We have already seen that one of the blessings which the slaveholders attribute to their favorite institution, is exemption from popular tumults, and from encroachments by the democracy upon the rights of property. Their argument is, that political power in the hands of the poor and laboring classes is always attended with danger, and that this danger is averted when these classes are kept in bondage. With these gentlemen, life and liberty seem to be accounted as the small dust of the balance, when weighed against slavery and plantations; hence, to preserve the latter they are ever ready to sacrifice the former, in utter defiance of laws and constitutions.

We have already noticed the murderous proposition in relation to abolitionists, made by Governor M'Duffie to the South Carolina Legislature in 1835: "It is my deliberate opinion that the *laws* of every community should punish this species of interference, by DEATH without benefit of clergy." In an address to a legislative assembly, Governor M'Duffie refrained from the indecency of recommending *illegal* murder; but we will soon find that the public sentiment of the South by no means requires that abolitionists shall be put to death with legal formalities; but on the contrary, the slaveholders are ready, in the language of Mr. Payne, to "hang them like dogs."

We hazard little in the assertion, that in no civilized Christian community on earth is human life less protected by law, or more frequently taken with impunity, than in the slave States of the Federal Union. We wish to impress upon you the danger and corruption to which you and your children are exposed from the institution, which, as we have shown you, exists by your sufferance. But you have been taught to respect this institution; and hence it becomes necessary to enter into details, however painful, and to present you with authorities which you cannot reject. What we have just said of the insecurity of human life, will probably be deemed by you and others as abolition slander. Listen, then, to slaveholders themselves.

"We long to see the day," said the Governor of Kentucky in his message to the Legislature, 1837, "when the law will assert its majesty, and stop the wanton destruction of life which almost *daily* occurs within the jurisdiction of this commonwealth. MEN SLAUGHTER EACH OTHER WITH ALMOST PERFECT IMPUNITY. A species of common law has grown up in Kentucky, which, were it written down, would, in all civilized countries, cause her to be re-christened, in derision, THE LAND OF BLOOD."

The present Bishop of the Episcopal Church in Kentucky ^[10] a few years since, published an article on the murders in that State. He states that some with whom he had conversed, estimated them at 80 per annum; but that he had rated them at about 30; and that he had ascertained that for the last three years, there had not been "an instance of capital punishment in any *white* offender." "It is believed," says he, "there are more homicides on an average of two years in *any* of our more populous *counties*, than in the whole of several of our *States* of equal, or nearly equal, population to Kentucky."

[10] It is believed this gentleman is *not* a slaveholder.

Governor McVay, of Alabama, in his message to the Legislature, November 15, 1837, thus speaks, "We hear of homicides in different parts of the State continually, and yet have few convictions and still fewer executions! Why do we hear of stabbings and shootings almost *daily* in some part or other of our State?"

"DEATH BY VIOLENCE.—The moral atmosphere in our State appears to be in a deleterious and sanguinary condition. Almost every exchange paper which reaches us, contains some inhuman and revolting case of murder, or death by violence. *Not less than* FIFTEEN deaths by violence have occurred, to our certain knowledge, within the past three months."—*Grand Gulf Miss. Advertiser, 27th June, 1837.*

CONTEMPT OF HUMAN LIFE.—In view of the crimes which are daily committed, we are led to inquire whether it is owing to the inefficiency of our laws, or to the manner in which these laws are administered, that this FRIGHTFUL DELUGE OF HUMAN BLOOD FLOWS THROUGH OUR STREETS AND OUR PLACES OF PUBLIC RESORT.—*New Orleans Bee, 23d May, 1838.*

At the opening of the Criminal Court in New Orleans, November 4th, 1837, Judge Lansuque delivered an address, in which, speaking of the prevalence of violence, he used the following language:

"As a Louisiana parent, I reflect with terror, that our beloved children, reared to become one day honorable and useful citizens, may be the victims of these votaries of vice and licentiousness. Without some powerful and certain remedy, our streets will become BUTCHERIES, OVERFLOWING WITH THE BLOOD OF OUR CITIZENS!"

While the slaveholders are terrified at the idea of the "great democratic rabble," and rejoice in human bondage as superseding the necessity of an "order of nobility, and all the appendages of a hereditary government," they have established a reign of terror, as insurrectionary and as sanguinary in principle, as that created by the sans culottes of the French revolution. We indulge in no idle declamation, but speak the words of truth and soberness.

A public meeting, convened in the *church!!* in the town of Clinton, Mississippi, 5th September, 1835—

Resolved, "That it is our decided opinion, that any individual who dares to circulate, with a view to effectuate the designs of the abolitionists, any of the incendiary tracts or newspapers now in the course of transmission to this country, is justly worthy, in the sight of God and man, of immediate death; and we doubt not that such would be the punishment of any such offender, in any part of the State of Mississippi where he may be found."

It would be tedious to copy the numerous resolutions of similar import, passed by public meetings in almost every slave State. You well know that the promoters of those lawless and sanguinary proceedings, did not belong to the "rabble"—they were not "mean whites," but rich, influential slaveholders. A meeting was held in 1835 at Williamsburgh, Virginia, which was harangued by no less a personage than JOHN TYLER, once Governor of the State, and since *President of the United States*: under this gentleman's auspices, and after his address, the meeting resolved—

"That we regard the printing and circulating within our limits, of incendiary publications, tending to excite our slaves to insurrection and rebellion, as treasonable acts of the most alarming character, and that when we detect offenders in the act, we will inflict upon them condign punishment, without resorting to any other tribunal."

The profligacy of this resolution needs no comment. Mr. Tyler well knew that the laws of Virginia, and every other State were abundantly sufficient to punish crime: but he and his fellow lynchers wished to deter the people from receiving and reading anything adverse to slavery; and hence, with their usual audacity, they determined to usurp the prerogative of courts and juries, and throw down all the bulwarks which the law has erected for the protection of innocence.

Newspapers are regarded as the mirrors of public opinion. Let us see what opinions are reflected in those of the South.

The *Charleston Courier*, 11th August, 1835, declared that "the gallows and the stake" awaited the abolitionists who should dare to "appear in person among us."

"The cry of the whole South should be death, instant death to the abolitionist, wherever he is caught."—*Augusta (Geo.) Chronicle*.

"Let us declare through the public journals of our country, that the question of slavery is not and shall not be open to discussion; that the system is too deep-rooted among us, and must remain for ever; that the very moment any private individual attempts to lecture us upon its evils and immorality, and the necessity of putting means in operation to secure us from them, in the same moment his tongue shall be cut out and cast upon the dunghill."—*Columbia (S.C.) Telescope*.

This, it will be noticed, is a threat addressed, not to the Northern abolitionists, but to *you*, fellow-citizens, to the great majority of the white inhabitants of the South; and *you* are warned not to express *an opinion* offensive to your aristocracy.

"AWFUL BUT JUST PUNISHMENT.—We learn, by the arrival of the steamboat Kentucky last evening from Richmond, that Robinson, the Englishman mentioned in the *Beacon* of Saturday, as being in the vicinity of Lynchburg, was taken about fifteen miles from that town, and HANGED on the spot, for exciting the slaves to insurrection."—*Norfolk (Va.) Beacon, 10th August, 1835.*

"We can assure the Bostonians, one and all, who have embarked in the nefarious scheme of abolishing slavery at the South, that lashes will hereafter be spared the backs of their emissaries. Let them send out their men to Louisiana; they will never return to tell their sufferings, but they shall expiate the crime of interfering with our domestic institutions, by being BURNED AT THE STAKE."—*New-Orleans True American.*

"Abolition editors in slave States will not dare to avow their opinions. It would be instant DEATH to them."—*Missouri Argus.*

Here, again, is a threat directed against any of *you*, who may happen to have the command of types and printer's ink.

Now, we ask what must be the state of society, where the public journals thus justify and stimulate the public thirst for blood? The very idea of *trial* is scouted, and the mob, or rather the slaveholders themselves, are acknowledged to be the arbiters of life and death. The question we put to you as to the *state of society*, has been already answered by the official declarations of the Governors of Kentucky and Alabama, and of Judge Lansuque, of New Orleans; as well as by the extracts we have given you from some of the southern journals, relative to the frequency of murders among them. We could farther answer it, by filling sheets with accounts of fearful atrocities. But we purposely refrain from referring to assassinations and private crimes; for such, as already remarked, occur in a greater or less degree in every community, and do not necessarily form a test of the standard of morals. But we ask your attention to a test which cannot be questioned. We will present for your consideration a series of atrocities, perpetrated, not by individuals in secret, but in open day by the *slaveholding populace.*

We have seen that two of the Southern papers we have quoted, threaten abolitionists with *THE STAKE*. This awful and horrible punishment has been banished, by the progress of civilization, from the whole of Christendom, with the single exception of the American Slave States. It is scarcely necessary to say, that even in them, it is unknown to the laws, although familiar to the people. It is also deserving of remark, that the two journals which have made this atrocious threat were published, not among the rude borderers of our frontier settlements, but in the populous cities of Charleston and New-Orleans, the very centres of Southern refinement.

"TUSCALOOSA (Alab.) June 20, 1827. The negro [one who had killed a Mr. McNeilly was taken before a Justice of the Peace, who *waived his authority*, perhaps through fear, as a crowd of persons had collected, to the number of seventy or eighty, near Mr. People's [the Justice] house. He acted as President of the mob, and put the vote, when it was decided that he should be immediately executed by being *burned to death*. The sable culprit was led to a tree and tied to it, and a large quantity of pine knots collected and placed around him, and the fatal torch applied to the pile, even against the remonstrances of several gentlemen who were present, and the miserable being was in a short time burned to ashes. This is the *second* negro who has been *thus* put to death, without judge or jury in this country."

On the 28th of April, 1836, a free negro was arrested in St. Louis (Missouri) and committed to jail on a charge of murder. A mob assembled and demanded him of the jailor, who surrendered him. The negro was then chained to a tree *a short distance from the Court House*, and burned to death.

"After the flames had surrounded their prey, and when his clothes were in a blaze all over him, his eyes burnt out of his head, and his mouth seemingly parched to a cinder, some one in the *crowd*, more compassionate than the rest, proposed to put an end to his misery by shooting him, when it was replied that it would be of no use, since he was already out of his pain. 'No,' said the wretch, 'I am not, I am suffering as much as ever; shoot me, shoot me.' 'No, no,' said one of the fiends who was standing about the sacrifice they were roasting, 'he

shall not be shot, I would sooner slacken the fire, if that would increase his misery;' and the man who said this was, we understand, an *officer of justice*."—*Alton Telegraph*.

"We have been informed that the slave William, who murdered his master (Huskey) some weeks since, was taken by a party a few days since *from the Sheriff of Hot Spring*, and *burned alive*! yes, tied up to the limb of a tree and a fire built under him, and consumed in a slow lingering torture."—*Arkansas Gazette*, Oct. 29. 1836.

The *Natchez Free Trader*, 16th June, 1842, gives a horrible account of the execution of the negro, Joseph, on the 5th of that month for murder.

"The body," says that paper, "was taken and chained to a tree immediately on the bank of the Mississippi, on what is called Union Point. The torches were lighted and placed in the pile. He watched unmoved the curling flame as it grew, until it began to entwine itself around and feed upon his body; then he sent forth cries of agony painful to the ear, begging some one to blow his brains out; at the same time surging with almost superhuman strength, until the staple with which the chain was fastened to the tree, not being well secured, drew out, and he leaped from the burning pile. At that moment the sharp ring of several rifles was heard, and the body of the negro fell a corpse to the ground. He was picked up by two or three, and again thrown into the fire and consumed."

"ANOTHER NEGRO BURNED.—We learn from the clerk of the Highlander that, while wooding a short distance below the mouth of Red river, they were *invited to stop a short time and see another negro burned*."—*N. O. Bulletin*.

Thus we see that burning negroes alive is treated as a spectacle, and strangers are invited to witness it. The victim of this exhibition was the negro Enoch, said to have been an accomplice of Joseph, and was burned a few days after the other.

We have thus given you no less than six instances of human beings publicly burned alive in four slave States, and in each case with entire

impunity to the miscreants engaged in the horrible murder. But these were cases which *happened* to be reported in the newspapers, and with which we *happened* to become acquainted. There is reason to believe that these executions are not of rare occurrence, and that many of them, either through indifference or policy, are not noticed in the Southern papers.

A recent traveller remarks, "Just before I reached Mobile, two men were *burned alive* there in a slow fire in the open air, in the presence of the *gentlemen* of the city. No word was breathed of the transaction in the newspapers."—*Martineau's Society in America*, vol. I., p. 373.

But the murderous spirit deplored by the Governors of Kentucky and Alabama, and the "frightful deluge of human blood" complained of by the New Orleans editor, had no reference to the murder of *negroes*. Men who can enjoy the sight of negroes writhing in flames, and are permitted by the civil authorities to indulge in such exhibitions, will not be very scrupulous in taking the lives of each other. You well know how incessantly the work of human slaughter is going on among you: and no reader of your public journals can be ignorant of the frequent occurrence of your deadly street fights. But, for the reason already given, we meddle not with these. We charge the slaveholding community, as such, with *sanctioning* murder, and protecting the perpetrators, and setting the laws at defiance. This we know is a grievous charge, and most grievous the proof of it. But mistake not our meaning. God forbid we should deny that many of the community to which we refer, utterly abhor the atrocities we are about to detail. We speak of the murderous feelings of the slaveholding community, just as we speak of the politics, the manners, and the morals of any other community, freely acknowledging that there are numerous and honorable exceptions. For the general truth of our assertion, we appeal to the authorities and the facts we have already laid before you, and to those we are about to offer.

You have already seen that the pro-slavery press has recommended the murder of such northern abolitionists as may be caught in the South; we now ask your attention to the efforts made by the slaveholders to get prominent abolitionists into their power.

In 1831, a citizen of Massachusetts established a newspaper at Boston, called the *Liberator*, and devoted to the cause of negro emancipation. The

undertaking was perfectly legal, and he himself, having never been in Georgia, had of course violated none of her laws. The legislature, however, forthwith passed a law, offering a bribe of \$5000 to any person who would arrest and bring to trial and conviction, in Georgia, the editor and publisher of the Boston paper. This most atrocious law was "approved" on the 26th Dec., 1831, by WILLIAM LUMPKIN, the Governor. The object of the bribe could have been no other than the abduction and murder of the conductor of the paper—his *trial* and *conviction* under Georgia laws being a mere pretence: the Georgia courts have as much jurisdiction over the Press in Paris as in Boston. A Lynch court was the only one that could have taken cognizance of the offence, and its proceedings would undoubtedly have been both summary and sanguinary.

The horrible example thus set by the Georgia Legislature was not without its followers.

At a meeting of slaveholders at Sterling, Sept. 4, 1835, it was formally recommended to the Governor to issue a proclamation, offering the \$5000 appropriated by the Act of 1831, as a reward for the apprehension of *either* of *ten* persons named in the resolution, citizens of New York and Massachusetts, and one a subject of Great Britain; not one of whom it was even pretended had ever set his foot on the soil of Georgia.

The *Milledgeville [Ga.] Federal Union*, of Feb. 1, 1836, contained an offer of \$10,000 for kidnapping A. A. Phelps, a clergyman residing in the city of New York.

The Committee of Vigilance of the Parish of East Feliciana, offered in the Louisiana Journal of 15th Oct., 1835, \$50,000 to any person who would deliver *into their hands* Arthur Tappan, a New York merchant.

At a public meeting of the citizens of Mount Meigs, Alabama, 13th August, 1836, the Honorable [!] Bedford Ginress in the chair, a reward of \$50,000 was offered for the apprehension of Arthur Tappan, or Le Roy Sunderland, a clergyman of the Methodist Church residing in New York.

Let us now witness the practical operation of that murderous spirit which dictated the foregoing villainous bribes. We have already seen the conduct

of the slave-holding community to *negro* offenders; we are now to notice its tender mercies to men of its own color.

In 1835, there was a real or affected apprehension of a servile insurrection in the State of Mississippi. The slaveholders, as usual on such occasions, were exceedingly frightened, and were exceedingly cruel. A pamphlet was afterwards published, entitled "*Proceedings of the Citizens of Madison County, Miss., at Livingston, in July, 1835, in relation to the trial and punishment of several individuals implicated in a contemplated insurrection in this State.—Prepared by Thomas Shuckelford, Esquire. Printed at Jackson, Miss.*" This pamphlet, then, is the *Southern* account of the affair; and while it is more minute in its details than the narratives published in the newspapers at the time, we are not aware that it contradicts them. It may be regarded as a sort of semi-official report put forth by the slaveholders, and published under their implied sanction. It appears, from this account, that in consequence of "rumors" that the slaves meditated an insurrection—that a colored girl had been heard to say that "she was tired of waiting on the white folks—wanted to be her own mistress for the balance of her days, and clean up her own house, &c.," a meeting was held at which resolutions were signed, organizing a committee, and authorizing them "*to bring before them any person or persons, either white or black, and try in a summary manner any person brought before them, with power to hang or whip, being always governed by the laws of the land, so far only as they shall be applicable to the case in question; otherwise to act as in their discretion shall seem best for the benefit of the country and the protection of its citizens.*"

This was certainly a most novel mode of erecting and commissioning a Court of judicature, with the power of life and death, expressly authorized to act independently of "the laws of the land."

The Constitution of the State of Mississippi, which no doubt many of the honorable Judges of the Court had on other occasions taken an oath to support, contains the following clause:—"No person shall be accused, arrested or detained, except in cases ascertained by law, and according to the forms which the same has prescribed; and no person shall be punished, but in virtue of a law established and promulgated prior to the offence, and legally applied."

Previous to the organization of this Court, FIVE slaves had already been HUNG by the people. The Court, or rather, as it was modestly called by the meeting who erected it, "the committee," proceeded to try Dr. Joshua Cotton, of New England. It was proved to the satisfaction of the committee that he had been detected in many low tricks—that he was deficient in feeling and affection for his second wife—that he had traded with negroes—that he had asked a negro boy whether the slaves were whipped much, how he would like to be free? &c. It is *stated* that Cotton made a confession that he had been aiming to bring about a conspiracy. The committee condemned him TO BE HANGED IN AN HOUR AFTER SENTENCE.

William Saunders, a native of Tennessee, was next tried. He was convicted "of being often out at night, and giving no satisfactory explanation for so doing"—of equivocal conduct—of being intimate with Cotton, &c. Whereupon, by a unanimous vote, he was found guilty and sentenced to be HUNG. He was executed with Cotton on the 4th of July.

Albe Dean, of Connecticut, was next tried. He was convicted of being a lazy, indolent man, having very little *pretensions* to honesty—of "pretending to make a living by constructing washing machines"—of "often coming to the owners of runaways, to intercede with the masters to save them from a whipping." He was sentenced to be HUNG, and was executed.

A. L. Donovan, of Kentucky, was then put on his trial. He was suspected of having traded with the negroes—of being found in their cabins, and enjoying himself in their Society. It was proved that "at one time he actually undertook to release a negro who was tied, which negro afterwards implicated him," and that he once told an overseer "it was cruel work to be whipping the poor negroes as he was obliged to do." The committee were satisfied, from the evidence before them, that Donovan was an emissary of those deluded fanatics of the North, the abolitionists. He was condemned to be HUNG, and suffered accordingly.

Ruel Blake was next tried, condemned and HUNG. "He protested his innocence to the last, and said his life was sworn away."

Here we have a record of no less than TEN men, five black and five white, probably all innocent of the crime alleged against them, deliberately

and publicly put to death by the slaveholders, without the shadow of legal authority.

The Maysville, Ken. Gazette, in announcing Donovan's murder, says, "he formerly belonged to Maysville, and was a much respected citizen."

A letter from Donovan to his wife, written just before his execution, and published in the Maysville paper, says, "I am doomed to die to-morrow at 12 o'clock, on a charge of having been concerned in a negro insurrection, in this State, among many other whites. We are not tried by a regular jury, but by a committee of PLANTERS appointed for the purpose, who have not time to wait on a person for evidence.... Now I must close by saying, before my Maker and Judge, that I go into his presence as innocent of this charge as when I was born.... I must bid you a final farewell, hoping that the God of the widow and the fatherless will give you grace to bear this most awful sentence."

And now, did these butcheries by the Mississippi PLANTERS excite the indignation of the slaveholding communities? Receive the answer from an editor of the Ancient Dominion, replying to the comments of a Northern newspaper. "The Journal may depend upon it that the Cottons and the Saunders, men confessing themselves guilty of inciting and plotting insurrection, will be HANGED UP wherever caught, and that *without the formality of a legal trial*. Northern or Southern, such will be their inevitable doom. For our part, WE APPLAUD the transaction, and none in our opinion can condemn it, who have not a secret sympathy with the Garrison sect. If Northern sympathy and effort are to be cooled and extinguished by such cases, it proves but this, that the South ought to feel little confidence in the professions it receives from that quarter."—*Richmond Whig*.

About the time of the massacre in Clinton County, another awful tragedy was performed at Vicksburg in the same State. FIVE men, said to be *gamblers*, were HANGED by the mob on the 5th July, in open day.

The *Louisiana Advertiser*, of 13th July, says, "These unfortunate men claimed to the last, the privilege of American citizens, the *trial by Jury*, and professed themselves willing to submit to anything their country would legally inflict upon them: but we are sorry to say, their petition was in vain.

The black musicians were ordered to strike up, and the voices of the supplicants were drowned by the fife and drum. *Mr. Riddle, the Cashier of the Planters' Bank*, ordered them to play Yankee Doodle. The unhappy sufferers frequently implored a drink of water, *but they were refused.*"

The sympathy of the Louisiana editor, so different from his brother of Richmond, was probably owing to the fact, that the murdered men were accused of being gamblers, and not abolitionists.

When we said these five men were hung by the *mob*, we did not mean what Chancellor Harper calls "the democratic rabble." It seems the Cashier of a Bank, a man to whom the slaveholders entrust the custody of their money, officiated on the occasion as Master of Ceremonies.

A few days after the murders at Vicksburg, a negro named Vincent was sentenced by a Lynch club at Clinton, Miss., to receive 300 lashes, for an alleged participation in an intended insurrection. We copy from the *Clinton Gazette*.

"On Wednesday evening Vincent was carried out to receive his stripes, but the ASSEMBLED MULTITUDE were in favor of *hanging* him. A vote was accordingly *fairly* taken, and the hanging party had it by an overwhelming majority, as the politicians say. He was remanded to *prison*. On the day of execution a *still larger crowd was assembled*, and fearing that the public sentiment might have changed in regard to his fate, after everything favorable to the culprit was alleged which could be said, the vote was taken, and his *death was demanded by the people*. In pursuance of this sentiment, so unequivocally expressed, he was led to a black jack and suspended to one of its branches—WE APPROVE ENTIRELY OF THE PROCEEDINGS; THE PEOPLE HAVE ACTED PROPERLY."

Thus, SIXTEEN human beings were deliberately and publicly murdered, by assembled crowds, in different parts of the State of Mississippi, within little more than one WEEK, in open defiance of the laws and Constitution of the State.

And now we ask, what notice did the chief magistrate of Mississippi, sworn to support her Constitution, sworn to execute her laws—what notice,

we ask, did he take of these horrible massacres? Why, at the next session of the Legislature, Governor Lynch, addressing them in reference to abolition, remarked, "Mississippi has given a *practical* demonstration of feeling on this exciting subject, that may serve as an impressive admonition to offenders; and however we may regret the occasion, we are constrained to admit, that necessity will sometimes prompt a summary mode of trial and punishment unknown to the law."

The iniquity and utter falsehood of this declaration, as applied to the transactions alluded to, are palpable. If the victims were innocent, no necessity required their murder. If guilty, no necessity required their execution contrary to law. There was no difficulty in securing their persons, and bringing them to trial.

In 1841, an *unsuccessful* attempt was made in Kentucky to murder a man. The assailants were arrested and lodged in jail for trial. Their fate is thus related in a letter by an eye-witness, published in the Cincinnati Gazette:—

"Williamstown, Ky., July 11, 1841.

"The unfortunate men, Lyman Couch and Smith Maythe, were taken out of jail on Saturday about 12 o'clock, and taken to the ground where they committed the horrid deed on Utterback, and at 4 o'clock were HUNG on the tree where Utterback lay when his throat was cut. The jail was opened by force. I suppose there were from FOUR TO SEVEN HUNDRED people engaged in it. Resistance was all in vain. There were three speeches made to the mob, but all in vain. They allowed the prisoners the privilege of clergy for about five hours, and then observed that they had made their peace with God, and they deserved to die. The mob was conducted with coolness and order, more so than I ever heard of on such occasions. But such a day was never witnessed in our little village, and I hope never will be again."

The fact that this atrocity was perpetrated in "our little village," and by a rural population, affords an emphatic and horrible indication of the state of morals in one of the oldest and best of our slave States.

Would that we could here close these fearful narratives; but another and more recent instance of that ferocious lawlessness which slavery has engendered, must still be added. The following facts are gathered from the Norfolk (Va.) Beacon of 19th Nov., 1842.

George W. Lore was, in April, 1842, convicted in Alabama, on circumstantial evidence, of the crime of murder. The Supreme Court granted a new trial, remarking, as is stated in another paper, that the testimony on which he was convicted was "unfit to be received by any court of justice recognized among civilized nations." In the mean time, Lore escaped from jail, and was afterwards arrested. He was seized by a mob, who put it to vote, whether he should be surrendered to the civil authority or be *hung*. Of 132 votes, 130 were for immediate death, and he was accordingly HUNG at Spring Hill, Bourbon County, on the 4th November.

And now, fellow-citizens, what think you of Mr. Calhoun's "most safe and stable basis for free institutions?" Do you number TRIAL BY JURY among free institutions? You see on what basis it rests—the will of the slaveholders. You see by what tenure you and your children hold your lives. In New York, you are told by high Southern authority, "you may find loafer, and loco-foco, and agrarian, and the most corrupt and depraved of rabbles." But we ask you, where would your life be most secure if charged with crime, amid the rabble of New York or that of Clinton, Vicksburg, and Williamstown? We think we have fully proved our assertion respecting the disregard of human life felt by the slaveholding community; and of course their contempt for those legal barriers which are erected for its protection. Let us now inquire more particularly how far slavery is indeed a stable basis, on which free institutions may securely rest.

VIII. DISREGARD FOR CONSTITUTIONAL OBLIGATIONS.

Governor McDuffie, in his speech of 1834 to the South Carolina Legislature, characterized the Federal Constitution as "that miserable mockery of blurred, and obliterated, and tattered parchment." Judging from their conduct, the slaveholders, while fully concurring with the Governor in his contempt for the national parchment, have quite as little respect for their own State Constitution and Laws.

The "tattered parchment" of which Mr. McDuffie speaks, declares that "the citizens of each State shall be entitled to all the privileges and immunities of citizens of the several States." Art. IV. Sec. 2. Notwithstanding this express provision, there are in almost every slave State, if not in all, laws for seizing, imprisoning, and then selling as slaves for life, citizens having black or yellow complexions, entering within their borders. This is done under pretence that the individuals are supposed to be fugitives from bondage. When circumstances forbid such a supposition, other devices are adopted, for nullifying the provision we have quoted. By a law of Louisiana, every free negro or mulatto, arriving on board any vessel as a *mariner* or passenger, shall be immediately imprisoned till the departure of the vessel, when he is to be compelled to depart in her. If such free negro or mulatto returns to the State, he is to be imprisoned for FIVE years.

The jailor of Savannah some time since reported TEN STEWARDS as being in his custody. These were free citizens of other States, deprived of their liberty solely on account of the complexion their Maker had given them, and in direct violation of the express language of the Federal Constitution. If any free negro or mulatto enters the State of Mississippi, for any cause however urgent, any white citizen may cause him to be punished by the Sheriff with thirty-nine lashes, and if he does not immediately thereafter leave the State, he is SOLD AS A SLAVE.

In Maryland, a free negro or mulatto, coming into the State, is fined \$20, and if he returns he is fined \$500, and on default of payment, is sold AS A SLAVE. Truly indeed have the slaveholders rendered the Constitution a blurred, obliterated, and tattered parchment. But whenever this same Constitution can, by the grossest perversion, be made instrumental in upholding and perpetuating human bondage, then it acquires, for the time, a marvellous sanctity in their eyes, and they are seized with a holy indignation at the very suspicion of its profanation.

The readiness with which Southern Governors prefer the most false and audacious claims, under color of Constitutional authority, exhibits a state of society in which truth and honor are but little respected.

In 1833, seventeen slaves effected their escape from Virginia in a boat, and finally reached New York. To recover their slaves *as such*, a judicial investigation in New York would be necessary, and the various claimants would be required to prove their property. A more convenient mode presented itself. The Governor of Virginia made a requisition on the Executive of New York for them as fugitive *felons*, and on this requisition, a warrant was issued for their arrest and surrender. The pretended felony was stealing the *boat* in which they had escaped.

In 1839, a slave escaped from Virginia on board of a vessel bound to New York. It was *suspected*, but without a particle of proof, that some of the crew had favored his escape; and immediately the master made oath that *three* of the sailors, naming them, had feloniously STOLEN the slave; and the Governor, well knowing there was no slave-market in New York, and that no man could there be held in slavery, had the hardihood to demand the surrender of the mariners, on the charge of grand larceny; and, in his correspondence with the Governor of New York, declared the slave was worth six or seven hundred dollars, and remarked that *stealing* was "recognized as a CRIME by all laws, human and divine."

In 1841, a female slave, belonging to a man named Flournoy, in Georgia, was discovered on board a vessel about to sail for New York, and was recovered by her master. It was afterwards supposed, from the woman's story, that she had been induced by one of the passengers to attempt her escape. Whereupon Flournoy made oath that John Greenman did

feloniously STEAL his slave. But the Governor of New York had already refused to surrender citizens of his State, on a charge so palpably false and absurd. It was therefore deemed necessary to trump up a very different charge against the accused; and hence Flourney made a second affidavit, that John Greenman did *feloniously steal and take away three blankets, two shawls, three frocks, one pair of earrings, and two finger-rings, the property of deponent*. Armed with these affidavits, the Governor demanded the surrender of Greenman under the Constitution. Not an intimation was given by His Excellency, when he made the demand, of the *real facts* of the case, which, in a subsequent correspondence, he was compelled to admit. It turned out that the woman, instead of being stolen, went voluntarily, and no doubt joyfully, on board the vessel; and that the wearing apparel, &c., were the clothes and ornaments worn by her; nor was there a pretence that Greenman had ever touched them, or ever had them in his possession.

In 1838, Rev. John B. Mahan, a Methodist preacher, residing in Ohio, was reported to have given aid and shelter to fugitive slaves from Kentucky, and forthwith the Grand Jury of Mason County, in that State, indicted him, as being "late of the County of Mason," for aiding two slaves in making their escape from said county. On the strength of this indictment, Governor Clark, of Kentucky, issued his requisition on the Governor of Ohio, wherein he stated that the said Mahan "*has fled from justice, and is now going at large in the State of Ohio;*" and that by virtue of the authority vested in him by the "Constitution and Laws of the United States, he did demand the said John B. Mahan, as *a fugitive from the justice of the laws of this State.*" On this requisition Mahan was seized, carried into Kentucky, put in irons, and kept in prison as a felon for about ten weeks, when, after a trial which lasted six days, he was acquitted by the jury. Now it was a matter of notoriety, and *admitted* by the prosecution, that Mahan had not been in Kentucky for about *twenty years!!* Yet day after day was spent in endeavors to procure the conviction of a man who had committed no offence against the laws of the State, and whose person had been seized in consequence of a gross fraud, and a palpable and acknowledged falsehood. But how happened it that the slaveholders permitted their prey to escape? Fortunately for Mahan, the Governor of Ohio, after surrendering him, discovered the imposition that had been practised, and officially informed the Governor of Kentucky, that he could not consent that a citizen of Ohio should be taken to another State,

and tried for an offence not committed within her jurisdiction. The publication of this letter drew the attention of the community to the infamous outrage that had been practised. If, after this, Mahan had been Lynched, or even judicially punished, a controversy would have arisen between the two States, which would necessarily have given new strength and influence to the anti-slavery cause.

But perhaps the most insolent attempt yet made to pervert the Federal Constitution to the support of slavery, was the expedient devised in Alabama to muzzle the Northern press. An article appeared in a newspaper published in New York, in 1835, which gave offence to certain planters in that State; and forthwith a grand jury, *on their oaths*, indicted the New York publisher, "late of the County of Tuscaloosa," for endeavoring to excite insurrection among the slaves, by circulating a seditious paper; and on this indictment the Governor had the impudence to make a formal requisition for the surrender of the publisher, as a *fugitive from justice*, although he had never breathed the air of Alabama.

We have said that the slaveholders hold their *own* laws and Constitutions in the same contempt as those of the Federal Government, whenever they conflict with the security and permanency of slavery. One of the most inestimable of constitutional privileges is TRIAL BY JURY; and this, as we have seen, is trampled under foot with impunity, at the mandate of the slaveholders. Even JOHN TYLER, as it appears, is for inflicting summary punishment on abolitionists, by a Lynch club, "without resorting to any other tribunal."

We now proceed to inquire how far they respect the liberty of speech and of the press.

IX. LIBERTY OF SPEECH.

The whole nation witnessed the late successful efforts of the slaveholders in Congress, by their various gag resolutions, and through the aid of recreant Northern politicians, to destroy all freedom of debate adverse to "the peculiar institution." They were themselves ready to dwell, in debate, on the charms of human bondage; but when a member took the other side of the question, then, indeed, he was out of order, the constitution was outraged, and the Union endangered. We all know the violent threats which have been used, to intimidate the friends of human rights from expressing their sentiments in the national legislature. "As long," says Governor McDuffie to the South Carolina Legislature, "as long as the halls of Congress shall be *open* to the *discussion* of this question, we can have neither peace nor security." The Charleston Mercury is, on this subject, very high authority; and in 1837 its editor announced that "Public opinion in the South would now, we are sure, justify an *immediate resort to* FORCE *by the Southern delegation, even on the* FLOOR OF CONGRESS, were they forthwith to SEIZE AND DRAG FROM THE HALL any man who dared to insult them, as that eccentric old showman, John Quincy Adams has dared to do."

When so much malignity is manifested against the freedom of speech, in the very sanctuary of American liberty, it is not to be supposed that it will be tolerated in the house of bondage. We have already quoted a Southern paper, which declares that the moment "any private individual attempts to lecture us on the evils and immorality of slavery, that very moment his tongue shall be cut out and cast upon the dunghill."

In Marion College, Missouri, there appeared some symptoms of anti-slavery feeling among the students. A Lynch club assembled, and the Rev. Dr. Ely, one of the professors, appeared before them, and denounced abolition, and submitted a series of resolutions passed by the faculty, and among them the following: "We do hereby forbid all discussions and public meetings among the students upon the subject of domestic slavery." The Lynchers were pacified, and neither tore down the college nor hung up the professors; but before separating they resolved that they would oppose the

elevation to office of any man entertaining abolition sentiments, and would withhold their countenance and support from every such member of the community. Indeed, it is obvious to any person attentive to the movements of the South, that the slaveholders dread *domestic* far more than foreign interference with their darling system. They dread *you*, fellow-citizens, and they dread converts among themselves.

X. LIBERTY OF THE PRESS.

The Constitutions of all the slave States guarantee, in the most solemn and explicit terms, the Liberty of the Press; but it is well understood that there is one exception to its otherwise unbounded license—Property in human flesh is too sacred to be assailed by the press. The attributes of the Deity may be discussed, but not the rights of the master. The characters of public, and even of private men, may be vilified at pleasure, provided no reproach is flung upon the *slaveholder*. Every abuse in Church or State may be ferreted out and exposed, except the cruelties practiced upon the slaves, unless when they happen to exceed the ordinary standard of cruelty established by general usage. Every measure of policy may be advocated, except that of free labor; every question of right may be examined, except that of a man to himself; every dogma in theology may be propagated, except that of the sinfulness of the slave code. The very instant the press ventures beyond its prescribed limits, the constitutional barriers erected for its protection sink into the dust, and a censorship, the more stern and vindictive from being illegal, crushes it into submission. The midnight burglary perpetrated upon the Charleston Post-office, and the conflagration of the anti-slavery papers found in it, are well known. These papers had been sent to distinguished citizens, but it was deemed inexpedient to *permit* them to read facts and arguments against slavery. Pains will be taken to prevent *you* from reading this address, and vast pains have been taken to keep slaveholders as well as others ignorant of every fact and argument that militates against the system. Hence Mr. Calhoun's famous bill, authorizing every Southern post-master to abstract from the mails every paper relating to slavery. Hence the insane efforts constantly made to expurgate the literature of the world of all recognition of the rights of *black* men. Novels, annuals, poems, and histories, containing sentiments hostile to human bondage, are proscribed at the South, and Northern publishers have had the extreme baseness to publish mutilated editions for the Southern market. ^[11]

^[11] The Harpers, of New York, in reply to a letter from the South, complaining of the anti-slavery sentiments in a book they had recently published, stated,

"since the receipt of your letter we have published an edition of the 'Woods and Fields,' in which the offensive matter has been omitted."

In some of the slave States laws have been passed establishing a censorship of the press, for the exclusive and special benefit of the slaveholders. Some time since an anti-slavery pamphlet was mailed at New York, directed to a gentleman in Virginia. Presently a letter was received from William Wilson, post-master at Lexington, Va., saying—

"I have to advise you that a law passed at the last session of the Legislature of this State, which took effect on the first day of this month, makes it the duty of the post-masters or their assistants to report to some magistrate (under penalty of from \$50 to \$200), the receipt of all *such* publications at his office; and if, on examination, the magistrate is of opinion they come under the provision of the law, it is his duty to have them BURNT in his presence—*which operation was performed on the above mentioned pamphlet this morning.*"

The Rev. Robert J. Breckenridge, a well-known zealous opponent of abolition, edited, in 1835, "The Baltimore Religious Magazine." A number of this magazine contained an article from a correspondent, entitled "Bible-Slavery." The tone of this article not suiting the slave-breeders of Petersburg (Virg.), the subscribers were deprived of the numbers forwarded to them through the post-office of that town. The magazines were taken from the Office, and on the 8th May, 1838, were burnt in the street, before the door of the public reading-room, in the *presence and by the direction of the Mayor and Recorder!!*

It is surely unnecessary to remark, that this Virginia law is in contemptuous violation of the Constitution of Virginia, and of the authority of the Federal Government. The act of Congress requires each post-master to deliver the papers which come to his office to the persons to whom they are directed, and they require him to take an oath to fulfil his duty. The Virginia law imposes duties on an officer over whom they have no control, utterly at variance with his oath, and the obligations under which he assumed the office. If the postmaster must select, under a heavy penalty, for a public bonfire, all papers bearing on slavery, why may he not be hereafter

required to select, for the same fate, all papers hostile to Popery? Yet similar laws are now in force in various slave States.

Not only is this espionage exercised over the mail, but measures are taken to keep the community in ignorance of what is passing abroad in relation to slavery, and what opinions are elsewhere held respecting it.

On the 1st of August, 1842, an interesting address was delivered in Massachusetts, by the late Dr. Channing, in relation to West India emancipation, embracing, as was natural and proper, reflections on American slavery. This address was copied into a New York weekly paper, and the number containing it was offered for sale, as usual, by the agent of the periodical at Charleston. Instantly the agent was prosecuted by the South Carolina Association, and was held to bail in the sum of \$1,000, to answer for his CRIME. Presently after, this same agent received for sale a supply of "Dickens' Notes on the United States," but having before his eyes the fear of the slaveholders, he gave notice in the newspapers, that the book would "be submitted to highly intelligent members of the South Carolina Association for *inspection*, and IF the sale is approved by them, it will be for sale—if not, not." And so the population of one of the largest cities of the slave region were not permitted to read a book they were all burning with impatience to see, till the volume had been first *inspected* by a self-constituted board of censors! The slaveholders, however, were in this instance afraid to put their power to the test—the people might have rebelled if forbidden to read the "Notes," and hence one of the most powerful, effective anti-slavery tracts yet issued from the press was permitted to be circulated, because people *would* read what Dickens had written. Surely, fellow-citizens, you will not accuse us of slander, when we say that the slaveholders have abolished among you the liberty of the press. Remember the assertion of the editor of the Missouri Argus: "Abolition editors in the slave States will not dare to avow their opinions: it would be INSTANT DEATH to them."

XI. MILITARY WEAKNESS.

A distinguished foreigner, after travelling in the Southern States, remarked that the very aspect of the country bore testimony to the temerity of the nullifiers, who, defenceless and exposed as they are, could not dare to hazard a civil war; and surely no people in the world have more cause to shrink from an appeal to arms. We find at the South no one element of military strength. Slavery, as we have seen, checks the progress of population, of the arts, of enterprise, and of industry. But above all, the laboring class, which in other countries affords the materials of which armies are composed, is regarded among you as your most deadly foe; and the sight of a thousand negroes with arms in their hands, would send a thrill of terror through the stoutest hearts, and excite a panic which no number of the veteran troops of Europe could produce. Even now, laws are in force to keep arms out of the hands of a population which ought to be your reliance in danger, but which is your dread by day and night, in peace and war.

During our revolutionary war, when the idea of negro emancipation had scarcely entered the imagination of any of our citizens—when there were no "fanatic abolitionists," no "incendiary publications," no "treasonable" anti-slavery associations; in those palmy days of slavery, no small portion of the Southern militia were withdrawn from the defence of the country to protect the slaveholders from the vengeance of their own bondmen! This you would be assured was abolition slander, were not the fact recorded in the national archives. *The Secret Journal of Congress* (Vol. I., p. 105) contains the following remarkable and instructive record:—

"*March 29th, 1779.*—The Committee appointed to take into consideration the *circumstances of the Southern States*, and the ways and means for *their* safety and defence, report, That the State of South Carolina (as represented by the delegates of the said State, and by Mr. Huger, who has come hither at the request of the Governor of said State, on purpose to explain the particular circumstances thereof,) is UNABLE to make any effectual efforts with militia, by reason of the great proportion of citizens *necessary to remain at home, to prevent*

insurrection among the negroes, and to prevent the desertion of them to the enemy. That the state of the country, and the great number of these people among them, expose the inhabitants to *great danger*, from the endeavors of the enemy to excite them to revolt or desert."

At the first census, in 1790, eleven years after this report, and when the slaves had unquestionably greatly increased their numbers, they were only 107,094 *fewer* than the whites. If, then, these slaves exposed their masters "to great danger," and the militia of South Carolina were obliged to *stay at home* to protect their families, not from the foreign invaders, but the domestic enemies, what would be the condition of the little blustering nullifying State, with a foreign army on her shores, and 335,000 slaves ready to aid it, while her own white population, *militia* and all, is but as two whites to three blacks?

You well know that slaveholders, in answer to the abolitionists, are wont to boast of the fidelity and attachment of their slaves; and you also well know, that among themselves they freely avow their dread of these same faithful and attached slaves, and are fertile in expedients to guard against their vengeance.

It is natural that we should fear those whom we are conscious of having deeply injured, and all history and experience testify that fear is a cruel passion. Hence the shocking severity with which, in all slave countries, attempts to shake off an unrighteous yoke are punished. So late even as 1822, certain slaves in Charleston were *suspected* of an *intention* to rise and assert their freedom. No overt act was committed, but certain blacks were found who professed to testify against their fellows, and some, it is said, confessed their intentions.

On this ensued one of the most horrible judicial butcheries on record. It is not deemed necessary, in the chivalrous Palmetto State, to give grand and petit juries the trouble of indicting and trying slaves, even when their lives are at stake. A court, consisting of two Justices of the Peace and five freeholders, was convened for the trial of the accused, and the following were the results of their labors:—

July 2

6 hanged,

" 12	2 "
" 26	22 "
" 30	4 "
August 9	1 "
	—
Total	35

Now, let it be remembered, that this sacrifice of human life was made by one of the lowest tribunals in the State; a tribunal consisting of two petty magistrates and five freeholders, appointed for the occasion, not possessing a judicial rank, nor professing to be learned in the law; in short, a tribunal which would not be trusted to decide the title to an acre of ground—we refer not to the individuals composing the court, but to the court itself;—a court which has not power to take away the land of a white man, hangs black men by dozens!

Listen to the confessions of the slaveholders with regard to their happy dependents; the men who are so contented under the patriarchal system, and whose condition might well excite the envy of northern laborers, "the great democratic rabble."

Governor Hayne, in his message of 1833, warned the South Carolina Legislature, that "a state of *military preparation* must always be with us a state of perfect *domestic* security. A profound peace, and consequent apathy, may expose us to the danger of *domestic insurrection*." So it seems the happy slaves are to be kept from insurrection by a state of military preparation. We have seen that, during the revolutionary *war*, the Carolina militia were kept at home watching the slaves, instead of meeting the British in the field; but now it seems the same task awaits the militia in a season of profound peace. Another South Carolinian ^[12] admonishes his countrymen thus: "Let it never be forgotten that our negroes are truly the Jacobins of the country; that they are the anarchists, and the domestic enemy, THE COMMON ENEMY OF CIVILIZED SOCIETY, AND THE BARBARIANS WHO WOULD, IF THEY COULD, BECOME THE DESTROYERS OF OUR RACE."

[12] The author of "A Refutation of the Calumnies inculcated against the

Again, "Hatred to the whites, with the exception, in some cases, of attachment to the person and family of the master, is nearly universal among the black population. We have then a FOE, cherished in our very bosoms—a foe WILLING TO DRAW OUR LIFE-BLOOD whenever the opportunity is offered; in the mean time intent on doing us all the mischief in his power."—*Southern Religious Telegraph*.

In a debate in the Kentucky Legislature, in 1841, Mr. Harding, opposing the repeal of the law prohibiting the importation of slaves from other States, and looking forward to the time when the blacks would greatly out-number the whites, exclaimed:

"In such a state of things, suppose an insurrection of the slaves to take place. The master has become timid and fearful, the slave bold and daring—the white men, overpowered with a sense of superior numbers on the part of the slaves, cannot be embodied together; *every man must guard his own hearth and fireside*. No man would even dare for an hour to leave his own habitation; if he did, he would expect on his return to find his wife and children massacred. But the slaves, with but little more than the shadow of opposition before them, armed with the consciousness of superior force and superior numbers on their side, animated with the hope of liberty, and maddened with the spirit of revenge, embody themselves in every neighborhood, and furiously march over the country, visiting every neighborhood with all the horrors of civil war and bloodshed. And thus the yoke would be transferred from the black to the white man, and the master fall a bleeding victim to his own slave."

Such are the terrific visions which are constantly presenting themselves to the affrighted imaginations of the slaveholders; such the character which, *among themselves*, they attribute to their own domestics.

Attend to one more, and that one an extraordinary confession:

"We, of the South, are emphatically surrounded by a dangerous class of beings—degraded and stupid savages, who, if they could but

once entertain the idea, that immediate and unconditional death would not be their portion, would re-act the St. Domingo tragedy. But a consciousness, with all their stupidity, that a ten-fold force, superior in discipline, *if not in barbarity*, would gather from the *four corners of the United States*, and slaughter them, keeps them in subjection. But to the *non-slaveholding States* particularly, are we indebted for a permanent safeguard against insurrection. Without their assistance, the white population of the South would be *too weak* to quiet the innate desire for liberty, which is ever ready to act itself out with every rational creature."—*Maysville Intelligencer*.

And now we ask you, fellow-citizens, if all these declarations and confessions be true—and who can doubt it—what must be your inevitable condition, should your soil be invaded by a foreign foe, bearing the standard of EMANCIPATION?

In perfect accordance with the above confession, that to the non-slaveholding States the South is indebted for a permanent safeguard against insurrection, Mr. Underwood, of Kentucky, uttered these pregnant words in a debate, in 1842, in Congress, "THE DISSOLUTION OF THE UNION WILL BE THE DISSOLUTION OF SLAVERY."

The action of the Federal Government is, we know, controlled by the slave interest; and what testimony does that action bear to the military weakness of the South? Let the reports of its high functionaries answer.

The Secretary of War, in his report for 1842, remarked, "The works intended for the more remote Southern portion of our territory, particularly require attention. Indications are already made of designs of the worst character against that region, in the event of hostilities from a *certain quarter*, to which we cannot be insensible." The Secretary's fears had been evidently excited by the organization of *black* regiments in the British West Indies, and the threats of certain English writers, that a war between the two countries would result in the liberation of the slaves. The report from the Quarter-Master, General Jessup, a Southern man, betrays the same anxiety, and in less ambiguous terms: "In the event of a war," says he, "with either of the great European powers possessing colonies in the West Indies, there will be danger of the peninsula of Florida being occupied by BLACKS

from the Islands. A proper regard for the security of our *Southern States* requires, that prompt and efficient measures be adopted to prevent such a state of things." The Secretary of the Navy, a slaveholder, *hints* his fears in cautious circumlocution. Speaking of the event of a war with any considerable maritime power, he says, "It would be a war of incursions aimed at *revolution*. The first blow would be struck at us through our *institutions*;" he means, of course, "the peculiar institution." He then proceeds to show that the enemy would seek success "in arraying, what are supposed to be, the hostile elements of our *social system* against each other;" and he admits, that "even in the best event, war on our own soil would be the more expensive, the more embarrassing, and the more HORRIBLE in its effects, by compelling us at the same time to oppose an enemy in the field, and to *guard* against all attempts to *subvert our social system*." In plain language, an invading enemy would strike the first blow at the slave system, and thus aim at revolution,—a revolution that would give liberty to two and a half millions of human beings; and that such a war would be very embarrassing to the slaveholders, and the more horrible, because, as formerly in South Carolina, a large share of their military force would necessarily be employed, not in fighting the enemy, but in guarding the SOCIAL, that is, the "patriarchal system."

No persons are more sensible of their hazardous situation than the slaveholders themselves, and hence, as is common with people who are secretly conscious of their own weakness, they attempt to supply the want of strength by a bullying insolence, hoping to effect by intimidation what they well know can be effected in no other way. This game has long been played, and with great success, in Congress. It has been attempted in our negotiations with Great Britain, and has signally failed.

Your aristocracy, whatever may be their vaunts, are conscious of their military weakness, and shrink from any contest which may cause a foreign army to plant the standard of emancipation upon their soil. The very idea of an armed negro startles their fearful imaginations. This is disclosed on innumerable occasions, but was conspicuously manifested in a debate in the Senate. In July, 1842, a Bill to regulate enlistments in the naval service being under consideration, Mr. CALHOUN proposed an amendment, that negroes should be enlisted only as *cooks* and *stewards*. He thought it a

matter of *great consequence* not to admit blacks into our vessels of national defence. Mr. BENTON thought *all arms*, whether on land or sea, ought to be borne by the white race.

Mr. BAGBY. "In the Southern portion of the Union, the great object was to *keep arms and a knowledge of arms* out of the hands of the blacks. The subject addressed itself to every Southern heart. Self-preservation was the first law of nature, and the South must look to that."

On the motion of Mr. PRESTON, the bill was so amended as to include the army.

And think you that men, thus in awe of their own dependents, shuddering at a musket in the hands of a black, and with a population of two millions and a half of these dreaded slaves, will expose themselves to the tremendous consequences of a union between their domestic and foreign enemies? Of the four who voted against the British treaty, probably not one would have given the vote he did, had he not known to a certainty that the treaty would be ratified.

Think not we are disposed to ridicule the fears of the slaveholders, or to question their personal courage. God knows their perils are real, and not imaginary: and who can question, that with a hostile *British* army in the heart of Virginia or Alabama, the whole slave region would presently become one vast scene of horror and desolation? Heretofore the invaders of our soil were themselves interested in slave property: *now* they would be zealous emancipationists, and they would be accompanied by the most terrific vision which could meet the eye of a slaveholder, regiments of *black troops*, fully equipped and disciplined. Surely such a state of things might well appal the bravest heart, and palsy the stoutest arm. But, fellow-citizens, what, in such a catastrophe, would be your condition? Your fate and that of your wives and children would then be linked to that of your lordly neighbors. One indiscriminate ruin would await you all. But *you* may avert these accumulated horrors. You may change two and a half millions of domestic and implacable enemies into faithful friends and generous protectors. No sooner shall the negroes cease to be oppressed, than they will cease to hate. The planters of Jamaica were formerly as much afraid of their slaves, as your planters now are of theirs. But the Jamaica slaves, now

freemen, are no long dreaded; on the contrary, they form the chief military force of the island; and should a foreign foe attack it, would be found its willing and devoted defenders. It rests with *you* to relieve your country of its most dangerous enemy, to render it invulnerable to foreign assaults, and to dissipate that fearful anticipation of wrath and tribulation, which now broods over and oppresses the mind of every white who resides in a slave country.

We have called your attention to the practical influence of slavery on various points deeply affecting your prosperity and happiness. These are:

1. Increase of population.
2. State of education.
3. Industry and enterprise.
4. Feeling toward the laboring classes.
5. State of religion.
6. State of morals.
7. Disregard for human life.
8. Disregard for constitutional obligations.
9. Liberty of speech.
10. Liberty of the press.
11. Military weakness.

You will surely agree with us, that in many of these particulars, the States to which you belong are sunk far below the ordinary condition of civilized nations. The slaveholders, in their listlessness and idleness, in their contempt for the laws, in their submission to illegal and ferocious violence, in their voluntary surrender of their constitutional rights, and above all in their disregard for human life, and their cruelty in taking it, are, as a civilized and professedly a Christian community, without a parallel, unless possibly among some of the anarchical States of South America.

When compelled to acknowledge the superior prosperity of the free States, the slaveholders are fond of imputing the difference to tariffs, or to government patronage, or to any other than the true cause.

Let us then inquire, whether the inferior and unhappy condition of the slave States can indeed be ascribed to any natural disadvantage under which they are laboring, or to any partial or unjust legislation by the Federal Government?

In the first place, the slave States cannot pretend that they have not received their full share of the national domain, and that the narrowness of their territorial limits have retarded the development of their enterprise and resources. The area of the slave States is nearly *double* that of the free. New York has acquired the title of the *Empire* State; yet she is inferior in size to Virginia, Missouri, Georgia, Louisiana, or North Carolina.

Nor can it be maintained that the free States are in advance of the slave States, because from an earlier settlement they had the start in the race of improvement. Virginia is not only the largest, but the *oldest* settled State in the confederacy. She, together with Delaware, Maryland, North Carolina and South Carolina, were all settled before Pennsylvania.

Nor will any slaveholder admit, for a moment, that Providence has scattered his gifts with a more sparing hand at the South than at the North. The richness of their soil, the salubrity of their climate, the number and magnitude of their rivers, are themes on which they delight to dwell; and not unfrequent is the contrast they draw between their own fair and sunny land, and the ungenial climate and sterile soil of the Northern and Eastern States. Hence the moral difference between the two sections of our republic must arise from other than natural causes. It appears also that this difference is becoming wider and wider. Of this fact we could give various proofs; but let one suffice.

At the first census in 1790, the free population of	1,930,125
the present free States and Territories was	
" of the slave States and Territories,	1,394,847
Difference,	535,278

By the last census, 1840, the same population in the free States and Territories was	9,782,415
In the slave States and Territories,	4,793,738
Difference,	4,988,677

Thus it appears that in 1790 the free population of the South was 72 per cent. of that of the North, and that in 1840 it was only 49 per cent.; while the difference in 1840 is more than *nine* times as great as it was in 1790.

Thus you perceive how unequal is the race in which you are contending. Fifty years have given the North an increased preponderance of about four and a half millions of free citizens. Another fifty years will increase this preponderance in a vastly augmented ratio. And now we ask you, why this downward course? Why this continually increasing disparity between you and your Northern brethren? Is it because the interests of the slaveholders are not represented in the national councils? Let us see. We have already shown you that your *free* population is only 49 per cent. of that of the Northern States; that is, the inhabitants of the free States are more than *double* the free inhabitants of the slave States. Now, what is the proportion of members of Congress from the two sections?

In the Senate, the slave States have precisely as many as the free; and in the lower House, their members are 65 per cent. of those from the free States. [13]

[13] 135 from the free and 88 members from the slave States. According to *free* population, the South would have only 66 members.

The Senate has a veto on every law; and as one half of that body are slaveholders, it follows, of course, that no law can be passed without their consent. Nor has any bill passed the Senate, since the organization of the government, but by the votes of slaveholders. It is idle, therefore, for them to impute their depressed condition to unjust and partial legislation, since they have from the very first controlled the action of Congress. Not a law has been passed, not a treaty ratified, but by their votes.

Nor is this all. Appointments under the federal government are made by the President, with the consent of the Senate, and of course the slaveholders have, and always have had, a veto on every appointment. There is not an officer of the federal government to whose appointment slaveholding members of the Senate have not consented. Yet all this gives but an inadequate idea of the political influence exercised by the *people* of the slave States in the election of President, and consequently over the policy of his administration. In consequence of the peculiar apportionment of Presidential Electors among the States, and the operation of the rule of *federal numbers*—whereby, for the purpose of estimating the representative population, five slaves are counted as three white men—most extraordinary results are exhibited at every election of President. In the election of 1848, the Electors chosen were 290: of these 169 were from the free, and 121 from the slave States.

The popular vote in the free States was 2,029,551

or one elector to 12,007 voters.

The popular vote in the slave States was 845,050

or one elector to 7,545 voters.

[14]

Even this disproportion, enormous as it is, is greatly aggravated in regard to particular States.

[14] South Carolina had 9 electors, chosen by the Legislature. These are deducted in the calculation.

New York

gave 455,761 votes, and had 36 electors.

Virginia

Maryland

N. Carolina

gave 242,547 " " 36 "

Ohio

gave 328,489 " " 28 "

Delaware

Georgia

Louisiana

Alabama

gave 237,811 " " 38 "

Arkansas

Florida

Texas

These facts address themselves to the understanding of all, and prove, beyond cavil, that the slave States have a most unfair and unreasonable representation in Congress, and a very disproportionate share in the election of President.

Nor can these States complain that they are stinted in the distribution of the *patronage* of the national government. The rule of *federal numbers*, confined by the Constitution to the apportionment of representatives, has been extended, by the influence of the slaveholders, to other and very different subjects. Thus, the distribution among the States of the surplus revenue, and of the proceeds of the public lands, was made according to this same iniquitous rule.

It is not to be supposed that the slaveholders have failed to avail themselves of their influence in the federal government. A very brief statement will convince you, that if they are now feeble and emaciated, it is not because they have been deprived of their share of the loaves and fishes.

By law, midshipmen and cadets, at West Point, are appointed according to the Federal ratio; thus have the slaveholders secured to themselves an additional number of officers in the Army and Navy, on account of their slaves.

Reflect for a moment on the vast patronage wielded by the President of the United States, and then recollect, that should the present incumbent (General Taylor) serve his full term, the office will have been filled no less than *fifty-two* years out of sixty-four by slaveholders! ^[15]

[15] Except one month by General Harrison.

Of 21 Secretaries of State, appointed up to 5th March, 1849, only six have been taken from the free States.

For 37 years out of 60, the chair of the House of Representatives has been filled and its Committees appointed by slaveholders.

Of the Judges of the Supreme Court, 18 have been taken from the slave, and but 14 from the free States.

In 1842, the United States were represented at foreign Courts by 19 Ministers and Charges d'Affaires. Of these fat Offices, no less than 13 were assigned to slaveholders!

Surely, surely, if the South be wanting in every element of prosperity—if ignorance, barbarity and poverty be her characteristics, it is not because she has not exercised her due influence in the general government, or received her share of its honors and emoluments.

PROSPECTS FOR THE FUTURE.

If, fellow-citizens, with all the natural and political advantages we have enumerated, your progress is still downward, and has been so, compared with the other sections of the country, since the first organization of the Government, what are the anticipations of the distant future, which sober reflection authorizes you to form? The causes which now retard the increase of your population must continue to operate, so long as slavery lasts. Emigrants from the North, and from foreign countries, will, as at present, avoid your borders, within which no attractions will be found for virtue and industry. On the other hand, many of the young and enterprising among you will flee from the lassitude, the anarchy, the wretchedness engendered by slavery, and seek their fortunes in lands where law affords protection, and where labor is honored and rewarded.

In the meantime, especially in the cotton States, the slaves will continue to increase in a ratio far beyond the whites, and will at length acquire a fearful preponderance.

At the first census, in every slave State there was a very large majority of whites—now, the slaves out-number the whites in South Carolina, Mississippi and Louisiana, and the next census will unquestionably add Florida and Alabama, and probably Georgia, to the number of negro States.

And think you that this is the country, and this the age, in which the republican maxim that the MAJORITY must govern, can be long and barbarously reversed? Think you that the majority of the PEOPLE in the cotton States, cheered and encouraged as they will be by the sympathy of the world, and the example of the West Indies, will forever tamely submit to be beasts of burden for a few lordly planters? And remember, we pray you, that the number and physical strength of the negroes will increase in a much greater ratio than that of their masters.

In 1790 the whites in N. Carolina were to the slaves as

	2.80 to 1,	now as	1.97 to 1
" S. Carolina,	" 1.31 to 1,	"	.79 to 1
" Georgia,	" 1.76 to 1,	"	1.44 to 1
" Tennessee,	" 13.35 to 1,	"	3.49 to 1
" Kentucky,	" 5.16 to 1,	"	3.23 to 1

Maryland and Virginia, the great breeding States, have reduced their stock within the last few years, having been tempted, by high prices, to ship off thousands and tens of thousands to the markets of Louisiana, Alabama, and Mississippi. But these markets are already glutted, and human flesh has fallen in value from 50 to 75 per cent. Nor is it probable that the great staple of Virginia and Maryland will hereafter afford a bounty on its production. In these States slave labor is unprofitable, and the bondman is of but little value, save as an article of exportation. The cotton cultivation in the East Indies, by cheapening the article, will close the markets in the South, and thus it guarantees the abolition of slavery in the breeding States. When it shall be found no longer profitable to raise slaves for the market, the stock on hand will be driven South and sold for what it may fetch, and free labor substituted in its place. This process will be attended with results disastrous to the cotton States. To Virginia and Maryland, it will open a new era of industry, prosperity and wealth; and the industrious poor, the "mean whites" of the South, will remove within their borders, thus leaving the slaveholders more defenceless than ever. But while the white population of the South will be thus diminished, its number of slaves will be increased by the addition of the stock from the breeding States.

And what, fellow-citizens, will be the condition of such of *you* as shall then remain in the slave States? The change to which we have referred will necessarily aggravate every present evil. Ignorance, vice, idleness, lawless violence, dread of insurrection, anarchy, and a haughty and vindictive aristocracy will all combine with augmented energy in crushing *you* to the earth. And from what quarter do you look for redemption? Think you your planting nobility will ever grant freedom to their serfs, from sentiments of piety or patriotism? Remember that your clergy of all sects and ranks, many of them "Christian brokers in the trade of blood," unite in bestowing their benediction on the system as a *Christian* institution, and in teaching the slaveholders that they wield the whip as European monarchs the sceptre,

"by the grace of God." Do you trust to their patriotism? Remember that the beautiful and affecting contrast between the prosperity of the North and the desolation of the South, already presented to you, was drawn by W. G. Preston, of *hanging* notoriety. No, fellow-citizens, your great slaveholders have no idea of surrendering the personal importance and the political influence they derive from their slaves. Your Calhouns, Footes, and Prestons, all go for everlasting slavery.

Unquestionably there are many of the smaller slaveholders who would embrace abolition sentiments, were they permitted to examine the subject; but at present they are kept in ignorance. If then the fetters of the slave are not to be broken by the master, by whom is he to be liberated? In the course of time, a hostile army, invited by the weakness or the arrogance of the South, may land on your shores. Then, indeed, emancipation will be given, but the gift may be bathed in the blood of yourselves and of your children. Or the People—for they will be THE PEOPLE—may resolve to be free, and you and all you hold dear may be sacrificed in the contest.

Suffer us, fellow-citizens, to show you "a more excellent way." We seek the welfare of all, the rich and the poor, the bond and the free. While we repudiate all acknowledgment of property in human beings, we rejoice in the honest, lawful prosperity of the planter. Let not, we beseech you, the freedom of the slave proceed from the armed invader of your soil, nor from his own torch and dagger—but from *your* peaceful and constitutional interference in his behalf.

In breaking the chains which bind the slave, be assured you will be delivering yourselves from a grievous thralldom. Ponder well, we implore you, the following suggestions.

Without your co-operation, the slaveholders, much as they despise you, are powerless. To you they look for agents, and stewards, for overseers, and drivers, and patrols. To you they look for votes to elevate them to office, and to you they too often look for aid to enforce their Lynch laws. Feel then your own power; claim your rights, and exert them for the deliverance of the slave, and consequently for your own happiness and prosperity.

Let then your first demand be for LIBERTY OF SPEECH. Your Constitution and laws guarantee to you this right in the most solemn and explicit terms; and yet you have permitted a few slaveholders to rob you of it. Resume it at once. Be not afraid to speak openly of your wrongs, and of the true cause of them. Dread not the Lynch clubs. Their power depends wholly on opinion. The slaveholders are not strong enough to execute their own sentences, if *you* resist them. They shrank, in Charleston, from prohibiting the sale of Dickens' Notes, because they believed the people were determined to read them. Had the same curiosity been felt in Petersburg, to read the article on Bible Slavery in Breckenridge's Magazine, the slaveholders there would not have dared to purloin them from the post-office and burn them in the street. In the one place they strained at a gnat, in the other they swallowed a camel. Be assured, your bullies are timid bullies; not that they are wanting in individual courage, but because they are aware that their authority rests, not on their physical strength, but on *your* habits of deference and obedience. Speak then boldly, and without disguise; and be assured that no sooner will your tongues be loosed on the forbidden subject, than you will be surprised to find what a coincidence of thought exists in relation to it. Discussion once commenced, the enemies of slavery will multiply faster with you than they do elsewhere for the obvious reason, that with you there is no dispute about *facts*. You all know and daily witness the blighting influence of the curse which overspreads your land; and believe us, that just in proportion as your courage rises, will the arrogance of your oppressors sink.

By conversing freely among yourselves, and proclaiming your hostility to slavery in public meetings, you will create an influence that will soon reach the PRESS. The bands with which the slaveholders have bound this Leviathan will then be snapped asunder. Once establish a FREE PRESS, and the fate of slavery is sealed. Such a press will advocate your rights, will encourage education and industry, will point out the true cause of the depravation of morals, the prevalence of violence, and the depression of the public welfare.

Having gained the liberty of speech and of the press, you will go on, conquering and to conquer. Political action on your part will lead to new triumphs. The State legislatures and the public offices will no longer be the exclusive patrimony of the holders of slaves. Having once obtained a

footing in your legislative halls, you will have secured in a quiet, peaceable, constitutional mode, the downfall of slavery, the recovery of your rights, and the prosperity and happiness of your country.

Think us not extravagantly sanguine. The very horror manifested by the slaveholders of the means we recommend, is evidence of their efficacy. We advise you to exercise freedom of speech. Have they not endeavored to bully you into silence by the threat, that "the question of slavery is not and shall not be open to discussion;" and that the moment any private individual talks about the means of terminating slavery, "*that moment his tongue shall be cut out and cast upon a dunghill?*"

Promote a free press. Is not the wisdom of the recommendation verified by the proclamation made of "*instant death*" to the abolition editors in the slave States, if "*they avow their opinions?*"

Your Constitutions have indeed been rendered by the slaveholders "blurred and obliterated parchments;" be it your care to restore them to their pristine beauty, and to make them fair and legible charters of the rights of man.

But we doubt not, fellow-citizens, that although you give your cordial assent to all we have said respecting the practical influence of slavery, you have, nevertheless, some misgivings about the effect of *immediate* emancipation. Shut up as you are in darkness on this subject, threatened with death if you talk or write about it; while the utmost pains are taken to prevent books or papers, which might enlighten you, from falling into your hands, it would be wonderful indeed, were you at once prepared to admit the safety and policy of instant and unconditional emancipation. You are assured, and probably believe, that massacre, and conflagration, and universal ruin would ensue on "letting loose the negroes;" but you are kept in ignorance of the fact, that in various parts of the world, negroes have been let loose, and in no one instance have such consequences followed; and you are not permitted to learn, in discussion, the *reasons* why such consequences never have followed, and never will follow the immediate abolition of slavery. What think you would be the fate of the man who should attempt to deliver a lecture in Charleston or Mobile on the safety of emancipation? Yet such a lecture might be delivered with perfect safety,

were the lecturer to be accompanied by one or two hundred of *your* number, declaring their determination to maintain freedom of speech and to protect the lecturer. From such a lecture you would learn, with astonishment, that the atrocities in St. Domingo, so constantly used by the slaveholders to intimidate the refractory, arose from a civil war, which the planters, by their own folly and wickedness, kindled between themselves and the *free* blacks, and were wholly independent of the subsequent act of the French Government manumitting the slaves. You would also hear, perhaps for the first time, of the peaceful abolition of slavery in Mexico and South America. You would listen, with a surprise almost bordering on incredulity, to accounts of the glorious, wonderful success, attending the emancipation of 800,000 slaves in the British Colonies, without the loss of a single life. You would learn that in these colonies, among the liberated slaves, ten, twenty, thirty times as numerous as the whites, a degree of tranquility and good order and security is enjoyed, utterly unknown in any Southern or Western slave State. The complaints (grossly exaggerated, if they reach you through the medium of a pro-slavery press) of the want of labor and the diminution of production, arise not from the idleness, but the *industry* of the enfranchised slaves. Their wives and children, no longer toiling under the lash, are now engaged in the occupations of the family and of the school; while many of the fathers and husbands have become landholders, and raise their own food, and also articles for the market. Substantial and honest prosperity is gradually taking the place of that wealth, which, as in all other slave countries, was concentrated in the hands of a few, and was extorted from the labor of a wretched, degraded and dangerous population.

If you admit the greatest happiness of the greatest number to be the true test of national prosperity, then, beyond all controversy, the British West Indies are now infinitely more prosperous than at any previous period of their history.

Despots and aristocrats have, in all ages, been afraid of "turning loose" the PEOPLE, no matter of what hue was their complexion. You have seen that your own McDuffie does not scruple to intimate, that, were not the Southern laborers already shackled, an order of nobility would be required to keep them in subjection; and a shudder seizes Chancellor Harper, when

he reflects that the Northern allies of the slaveholders are democrats and agrarians.

A glorious career opens before you. In the place of your present contempt, and degradation, and misery, honor, and wealth, and happiness court your acceptance. By abolishing slavery you will become the architects of your own fortune, and of your country's greatness. The times are propitious for the great achievement. You will be cheered by the approbation of your own consciences, and by the plaudits of mankind. The institution which oppresses you is suffering from the decrepitude of age, and is the scorn and loathing of the world. Out of the slave region, patriots and philanthropists, and Christians of every name and sect abhor and execrate it. Do you pant for liberty and equality, more substantial than such as is now found only in your obliterated and tattered bills of right? Do you ask that your children may be rescued from the ignorance and irreligion to which they are now doomed, and that avenues may be opened for you and for them to honest and profitable employment? Unite then, we beseech you, with one heart and one mind, for the legal, constitutional abolition of slavery. The enemy is waxing faint and losing his courage. He is terrified by the echo of his own threats, and the very proposal to dissolve the Union and leave him to his fate, throws him into paroxysms. The North, so long submissive to his mandates, and awed by his insolence, laughs at his impotent rage; and all his hopes now rest upon a few profligate politicians whom he purchases with his votes, while their baseness excites his contempt, and their principles his fears. Now is the time, fellow-citizens, to assail the foe. Up—quit yourselves like men: and may Almighty God direct and bless your efforts!

Transcriber's Notes:

Errors in punctuation and inconsistent hyphenation were not corrected unless otherwise noted. The punctuation of the mid-nineteenth century was very different to that of today; with commas, periods, and colons sometimes appearing to be used interchangeably. Such variations in punctuation were kept as-is.

The tables sometimes have ditto marks, whose meaning are somewhat ambiguous. Those ditto marks are kept as-is.

On page 5, a period was placed after "p. 206".

On page 14, "supeperior" was replaced with "superior".

On page 23, a period was added after "*not* a slaveholder".

On page 29, "and and" was replaced with "and".

On page 35, "provison" was replaced with "provision".

On page 37, a period was replaced with a comma.

On page 43, "tribuual" was replaced with "tribunal".

On page 44, "patriarchial" was replaced with "patriarchal".

On page 55, "recomend" was replaced with "recommend".

*** END OF THE PROJECT GUTENBERG EBOOK ADDRESS TO THE
NON-SLAVEHOLDERS OF THE SOUTH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.